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The Retreat of Federal Power and the Rise of Post-Supremacy Federalism

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THE RETREAT OF FEDERAL POWER AND THE RISE OF POST-SUPREMACY FEDERALISM

VICTORIA GRACE LITMAN*

ABSTRACT

This Article introduces the theory of post-supremacy federalism to describe a structural condition in which federal law remains formally binding, but enforcement has durably receded or collapsed. Unlike frameworks grounded in intergovernmental friction or negotiated cooperation, this account begins from federal retreat—the cumulative erosion of enforcement capacity across judicial, administrative, legislative, and executive institutions. Post-supremacy federalism arises when three conditions are met: (1) federal law remains intact; (2) enforcement retreats; and (3) no formal devolution occurs. In this vacuum, states are not merely filling gaps. They are governing by default—under laws that still bind but no longer structure governance in a coherent or consistent way.

This Article maps the institutional dynamics behind this transformation, including judicial realignment, administrative collapse, legislative paralysis, and the rise of executive unilateralism. It then traces how this retreat manifests in four domains: drug policy, public education, environmental protection, and reproductive healthcare. In each, federal authority persists in theory, but meaningful enforcement has eroded—leaving states to construct and implement their own legal regimes without delegation, partnership, or protection. These domains are not newly decentralized. They are abandoned. Statutes like the Controlled Substances Act, Title IX, the Clean Air Act, and EMTALA remain binding, yet no longer coordinate or constrain state action. In their place, states exercise contingent authority—governing under conditions of legal

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precarity and enforcement asymmetry, exposed to federal snapback and forced to navigate an unstable landscape.

This Article does not propose reform. It offers a diagnosis. Post-supremacy federalism names the legal condition that emerges when federal authority recedes but does not relinquish control. Naming that condition is the first step toward understanding how governance now unfolds—and what may come next.

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INTRODUCTION

Federal authority is collapsing in plain sight—not everywhere, but across core domains of public law. Agencies are gutted. Statutes begin to go unenforced. Court orders are obeyed or ignored depending on politics, not law. The retreat has been building for years—but in recent months, it has accelerated so sharply that even close observers struggle to keep pace. In domain after domain, the federal government no longer reliably governs.

Consider marijuana: it remains illegal under federal law,¹ yet most states regulate it openly.² In abortion, recent Supreme Court decisions, like *Dobbs v. Jackson Women's Health*, have eliminated longstanding constitutional protections, leaving federal authority fragmented and geographically uneven.³ In administrative law, key federal agencies, from the Environmental Protection Agency⁴ to the Department of Education,⁵ have been gutted by budget cuts, politicized leadership, and escalating judicial constraints. Once central to the implementation of national policy, these agencies now operate with diminished authority, limited capacity, and eroded public trust. In areas like climate regulation, civil rights enforcement, and education policy, federal governance is increasingly unreliable. In others, like consumer data privacy, Congress has gone silent altogether, ceding entire policy arenas to state initiative.

¹ Controlled Substances Act of 2012, 21 U.S.C. § 812.

² *State Medical Cannabis Laws*, NAT'L CONF. OF STATE LEGISLATURES (June 27, 2025), <https://www.ncsl.org/health/state-medical-cannabis-laws>; Kate Bryan, *Cannabis Overview*, NAT'L CONF. OF STATE LEGISLATURES (June 20, 2024), <https://www.ncsl.org/civil-and-criminal-justice/cannabis-overview>.

³ See generally *Dobbs v. Jackson Women's Health Org.*, 597 U.S. 215 (2022).

⁴ Valerie Volcovici, *EPA Begins Layoffs of Environmental Justice Staff*, REUTERS (Apr. 22, 2025), <https://www.reuters.com/business/world-at-work/epa-begins-layoffs-environmental-justice-staff-2025-04-22/>.

⁵ Bianca Vázquez Toness, *Trump Has Ordered the Dismantling of the US Education Department. Here's What That Means*, AP NEWS (Mar. 21, 2025, at 13:48 ET), <https://apnews.com/article/trump-dismantling-education-department-8b5d0961700f0fe69d18ea80b437c8b8>.

These are not isolated developments. Together, they reflect a deeper structural transformation: federal enforcement has become fragmented, inconsistent, and often illusory. This breakdown demands a new vocabulary for describing who governs—and why.

This Article introduces the theory of *post-supremacy federalism*: a structural condition in which federal supremacy remains formally intact, but its functional force collapses. The catalyst is federal retreat—the sustained erosion of enforcement capacity across judicial, administrative, legislative, and executive institutions. In this vacuum, states govern by default—not with certainty, but under laws that still bind without reliably protecting.

Post-supremacy federalism arises when three conditions are met:

1. Federal law remains in force — Congress has not repealed the law, and the federal government retains theoretical authority.
2. Federal enforcement retreats — Agencies stop enforcing the law, and courts may narrow or decline to adjudicate it.
3. No formal devolution of power — The federal government does not formally cede control, but states step in by necessity.

These features distinguish post-supremacy federalism from cooperative, dual, or uncooperative models. This is not negotiated power-sharing. It is governance by absence.

The goal of this Article is to be descriptive, not normative. It does not advocate for a particular policy agenda. Instead, it offers a structural diagnosis: American federalism is entering a new phase. Unlike earlier theories that center intergovernmental friction or cooperative administration, this framework begins from breakdown and abandonment. It captures how state law is governing by default not because federal power has been disavowed, but because it is absent, unstable, or inconsistently asserted.

The proper division of power between state and federal governments is not a new problem—it is the foundational question of the United States. From the founding debates to the Civil War, from the New Deal to the Civil Rights Era, American federalism has always been contested, reimagined, and renegotiated. What is new in this era is not that power is shifting, but how. Today's transformation is not the result of political consensus, legal reform, or negotiated devolution. It is the product of federal withdrawal—unilateral, selective, and often opaque. The federal government is not handing authority to the states; it is pulling the rug out from under them. States are left to govern without formal delegation of power or the institutional tools once guaranteed by federal partnership. They are not stepping into sovereignty; they are inheriting uncertainty.

To be clear, no formal doctrinal shift has occurred in the interpretation of the Supremacy Clause. This Article uses the term *post-supremacy* to describe a functional breakdown, not a constitutional amendment or doctrinal overturning. Supremacy still exists in law—but in many domains, it no longer operates in practice.

This Article proceeds in five Parts.

Part I situates post-supremacy federalism within the broader history of American federalism. It traces how traditional models—dual, cooperative, and uncooperative—depend on a baseline of federal presence, and how that baseline has eroded. It introduces the concept of post-supremacy as a structural condition, not a doctrinal shift: federal law remains on the books, but enforcement no longer sustains governance.

Part II examines how this condition emerged. It traces the institutional hollowing of federal enforcement across four branches of government: a judiciary that selectively applies supremacy, an administrative state losing capacity, a paralyzed Congress, and an executive increasingly reliant on unilateral action. These forces have produced a regime of fragmented supremacy and widespread legal uncertainty.

Part III outlines the architecture of post-supremacy federalism. It defines the three criteria that signal its emergence—statutory persistence, enforcement retreat, and lack of formal devolution—and explores the consequences of contingent state authority.

Part IV applies this framework to four domains: drug policy, public education, environmental protection, and reproductive health care. Though distinct in substance, each reflects the same structural pattern: the federal government has retreated from meaningful governance, and states are left to act—uncertain of their power, yet unable to wait.

Part V considers the consequences of this shift: rising inequality, strategic fragmentation, and democratic precarity. It closes by identifying pathways for legal scholarship and state innovation amid federal retreat—not as a blueprint, but as a reckoning with the new reality of who governs.

I. PART I: FROM SUPREMACY TO STRUCTURAL RETREAT

This Part proceeds in three steps: first, it summarizes traditional supremacy; second it surveys the strain and shift from friction to absence; and third, it defines post-supremacy federalism.

A. *The Traditional Model*

The traditional model of federal supremacy rests on the principle that federal law is the “supreme Law of the Land,” binding on states and superior to conflicting state provisions.⁶ This foundational hierarchy, enshrined in the Supremacy Clause of Article VI of the Constitution, has historically served as a structural mechanism to ensure national coherence.⁷ In practice, supremacy has depended on the coordination of Congress, administrative agencies, and the courts to enact, enforce, and interpret federal law.⁸

⁶ U.S. CONST. art. VI, cl. 2; *see also* *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316, 405 (1819) (“[T]he government of the Union, though limited in its powers, is supreme within its sphere of action.”).

⁷ *See generally* Caleb Nelson, *Preemption*, 86 VA. L. REV. 225, 230–32 (2000) (discussing the constitutional function of the Supremacy Clause and its relationship to national coherence); Ernest A. Young, *The Rehnquist Court’s Two Federalisms*, 83 TEX. L. REV. 1, 20–25 (2004) (examining federal supremacy as a structural feature of the constitutional order).

⁸ *See* Gillian E. Metzger, *The Interdependent Relationship Between Internal and External Separation of Powers*, 59 EMORY L.J. 423, 435–39 (2009) (discussing how federal supremacy relies on interplay between congressional statutes, administrative enforcement, and judicial review); Abbe R. Gluck, *Our [National] Federalism*, 123 YALE L.J. 1996, 1998–99 (2014) (arguing that operational enforcement by Congress, agencies, and courts sustains federal authority).

Alexander Hamilton articulated this vision in Federalist Paper No. 33, defending the Supremacy Clause not as an innovation but as a logical necessity.⁹ For federal law to be legitimate, it must be enforceable—even against the states. The Court echoed this reasoning in *McCulloch v. Maryland*, striking down Maryland’s attempt to tax the Bank of the United States and affirming the federal government’s implied powers and functional supremacy: “the power to tax involves the power to destroy.”¹⁰ With this declaration, the Court made clear that federal power must prevail where state action threatens its existence—a foundational expression of legal supremacy.

In more recent years, *Arizona v. United States* reaffirmed this baseline, applying the preemption doctrine to invalidate state immigration laws where the federal government held exclusive authority.¹¹ At its strongest, federal supremacy is upheld by three institutional pillars: Congress enacts national norms, agencies implement and enforce them, and courts interpret and supervise compliance. But as those pillars weaken, the concept of supremacy shifts from a constitutional guarantee to a more fragile legal ideal.¹²

B. Early Strain and Erosion

Federal supremacy has never been unchallenged. From state defiance of desegregation orders to modern battles over immigration and gun laws, the conflict between state and federal authority has been a persistent feature of American governance.¹³ Yet in prior eras, such friction often occurred within a functioning federal structure. Whether resisting or cooperating, states engaged a federal system that retained the will and capacity to govern.

Even before the current collapse in enforcement, scholars recognized signs of erosion in federal supremacy. Abbe R. Gluck has observed that federalism now “comes—and goes—at Congress’s pleasure,” underscoring how statutory design had supplanted constitutional allocation of power as the primary site of federalism.¹⁴ Jessica Bulman-Pozen showed how contemporary federalism has operated less through sovereignty and process and more through administration and politics, with

⁹ THE FEDERALIST NO. 33, at 204–06 (Alexander Hamilton) (Clinton Rossiter ed., 1961); see also AKHIL REED AMAR, AMERICA’S CONSTITUTION: A BIOGRAPHY (2005) (emphasizing that Hamilton’s enforcement logic underlies the Supremacy Clause).

¹⁰ *McCulloch*, 17 U.S. at 431.

¹¹ *Arizona v. United States*, 567 U.S. 387, 400–03 (2012) (holding that several provisions of Arizona’s immigration law were preempted by federal law due to the federal government’s exclusive authority over immigration enforcement).

¹² See Jessica Bulman-Pozen, *Executive Federalism Comes to America*, 102 VA. L. REV. 953, 957–60 (2016) (arguing that federal supremacy loses structural force when executive coordination displaces legislative and judicial enforcement).

¹³ *Brown v. Bd. of Educ.*, 347 U.S. 483, 495–96 (1954); *Cooper v. Aaron*, 358 U.S. 1, 18–19 (1958); *Arizona*, 567 U.S. at 408; *N.Y. State Rifle & Pistol Ass’n v. Bruen*, 597 U.S. 1, 70–71 (2022).

¹⁴ Gluck, *supra* note 8, at 1998.

partisan conflict and executive negotiation shaping policy implementation.¹⁵ States increasingly acted as implementers or challengers within overlapping domains. This administrative interdependence blurred lines of authority and revealed the fragility of federal supremacy long before it was openly tested.

Today's strain runs deeper. In many domains, federal supremacy now persists only on paper—its institutional scaffolding eroded by legislative paralysis, administrative collapse, and judicial realignment. Congress now enacts few meaningful statutes. During the 118th Congress (2023–2024), only 274 public laws were passed, the lowest two-year total since at least the 1980s.¹⁶ Administrative agencies, long the engine of federal implementation, have been hollowed out at scale by politicization and disinvestment. After the Supreme Court lifted the injunction blocking President Trump's restructuring orders, the resulting layoffs, resignations, and early retirements gutted the federal workforce—displacing roughly 260,000 civil servants.¹⁷ Meanwhile, the federal courts have not merely withdrawn from governance; they have reoriented it—entrenching ideological priorities while undermining federal coherence. As Leah Litman¹⁸ has observed, the Court increasingly issues decisions that track partisan priorities and stretch or discard precedents to secure ideological outcomes.¹⁹ This is not ordinary institutional drift. It is a coordinated erosion of enforcement infrastructure across all three branches—a transformation that leaves supremacy intact in theory but fractured in practice.

While these developments are not entirely new, their convergence marks a shift from occasional lapses in federal authority to a sustained pattern of structural retreat. This is not simply the latest gridlock. It is a hollowing out of governance itself. The roots of this transformation stretch back decades—through cycles of legislative dysfunction, deregulatory policymaking, and mounting judicial skepticism toward the exercise of expansive federal regulatory power.²⁰ But in recent years, these forces

¹⁵ Jessica Bulman-Pozen, *From Sovereignty and Process to Administration and Politics: The Afterlife of American Federalism*, 123 YALE L.J. 1920, 1922–23 (2014).

¹⁶ See *118th Congress - First Session*, NAT'L ARCHIVES: OFF. OF THE FED. REG., <https://www.archives.gov/federal-register/laws/118-first-session> (last visited Apr. 2, 2026); *118th Congress - Second Session*, NAT'L ARCHIVES: OFF. OF THE FED. REG., <https://www.archives.gov/federal-register/laws/118-second-session> (last visited Apr. 2, 2026).

¹⁷ John Kruzel, Nandita Bose & Tim Reid, *Supreme Court Clears Way for Trump to Pursue Mass Federal Layoffs*, REUTERS (July 9, 2025), <https://www.reuters.com/legal/litigation/us-supreme-court-lifts-order-that-blocked-trumps-mass-federal-layoffs-2025-07-08/> (noting that by late April, about 100 days into the effort, roughly 260,000 career civil servants had been fired, resigned, or taken early retirement).

¹⁸ No relation, I wish!

¹⁹ See generally LEAH LITMAN, *LAWLESS: HOW THE SUPREME COURT RUNS ON CONSERVATIVE GRIEVANCE, FRINGE THEORIES, AND BAD VIBES* (2025) (documenting how the Court's recent appointments and case selection reflect ideological aims over precedent).

²⁰ See Gillian E. Metzger, *1930s Redux: The Administrative State Under Siege*, 131 HARV. L. REV. 1, 3–11 (2017) (describing the rise of judicial formalism that narrows federal regulatory authority); William W. Buzbee, *The Tethered President: Consistency and Contingency in*

have accelerated and compounded. What once appeared as isolated breakdowns now form a broader pattern: one in which federal supremacy endures in law but falters in practice. Post-supremacy federalism is not a singular moment. It is a lens for recognizing how the erosion of enforcement capacity—gradual at first, then increasingly deliberate—has shaped the structure of American governance.²¹

While many of these trends began decades ago, their convergence has intensified since 2016—accelerated by judicial reconfiguration, executive disinvestment in governance, and Congress’s inability to respond. Post-supremacy federalism does not mark a single rupture but describes a condition that has crystallized in recent years as enforcement authority has receded across domains.

C. *From Friction to Absence*

Much of the scholarly literature on federalism in the early 2000s centered on intergovernmental friction as a generative force. In their seminal work on “uncooperative federalism,” Jessica Bulman-Pozen and Heather Gerken reframed state resistance not as a breakdown, but as a productive feature of our constitutional structure—a mode of governance in which dissent within cooperative frameworks deepens democratic engagement.²² Gerken’s later work on “federalism all the way down” extended this insight, showing how subnational actors—local governments, street-level bureaucrats—exercise meaningful power within federal schemes.²³ Bulman-Pozen later theorized the shift from sovereignty and process to administration and politics, emphasizing how modern federalism operates through the partisan and institutional dynamic of program implementation, not just jurisdictional boundaries.²⁴ Building on these insights, Bulman-Pozen’s theory of “partisan federalism” shows how ideologically coherent parties, rather than formal constitutional design, now drive

Administrative Law, 98 B.U. L. REV. 1357, 1365 (2018) (noting increasing judicial skepticism toward agency policy reversals and the limits courts place on administrative action); *West Virginia v. EPA*, 597 U.S. 697, 740–49 (2022) (invoking the major questions doctrine to restrict EPA’s regulatory authority under the Clean Air Act).

²¹ For related accounts of structural strain in federal governance, see generally Abbe R. Gluck, *Federalism from Federal Statutes: Health Reform, Medicaid, and the Old-Fashioned Federalists’ Gamble*, 81 FORDHAM L. REV. 1749 (2013); Gillian E. Metzger, *Administrative Constitutionalism*, 91 TEX. L. REV. 1897, 1919–20 (2013); David E. Pozen, *Constitutional Bad Faith*, 129 HARV. L. REV. 885 (2016); Jessica Bulman-Pozen, *Partisan Federalism*, 127 HARV. L. REV. 1077, 1079–81 (2014).

²² Jessica Bulman-Pozen & Heather K. Gerken, *Uncooperative Federalism*, 118 YALE L.J. 1256, 1258–60 (2009).

²³ Heather K. Gerken, *Federalism All the Way Down*, 124 HARV. L. REV. 4, 6 (2010).

²⁴ See Bulman-Pozen, *supra* note 15, at 1922 (arguing that modern American federalism is shaped less by doctrinal boundaries and more by partisan and administrative engagement, as states navigate their roles as implementers within federal schemes).

state-federal interaction.²⁵ States channel national partisan conflict into legal challenges and policy innovation within overlapping federal frameworks.²⁶

Together, these accounts chart a powerful evolution in federalism theory: from formal structure to dynamic friction, to partisan administration. This Article offers a new framework that extends this trajectory but shifts the focus from contestation within federal systems to governance during their retreat. These earlier models presume an engaged federal government, sometimes domineering, sometimes cooperative—but always present. State and local actors are empowered through friction, resistance, or negotiation. That promise, however, increasingly fails to capture the present condition. While Bulman-Pozen's work traced the long arc of this transformation—from formal sovereignty to partisan friction, the current moment reflects a deeper erosion. What was once contestation within a functioning system is now governance in its absence. States are no longer resisting federal initiatives; they are governing alone, often without coordination, oversight, or support.

This is not a discrete rupture but a cumulative shift—a slow hollowing of federal enforcement that has turned productive friction into structural abandonment. Post-supremacy federalism does not reject earlier models of dynamic federalism. It builds on them to describe a new condition: one in which federal norms persist in form but no longer structure governance in a coherent or consistent way. What remains is not national coordination, but fragmented enforcement and contingent authority. What once looked like productive friction now increasingly looks like abandonment.

D. Defining Post-Supremacy Federalism

Post-supremacy federalism describes a governance condition in which federal supremacy remains codified but no longer operates coherently. It offers a descriptive framework for understanding how the erosion of federal enforcement—through judicial politicization, administrative collapse, and legislative paralysis—produces fragmentation, uncertainty, and legal drift in domains where centralized governance once prevailed.²⁷

To be clear, this is not nullification, the theory that states can declare null and void any federal law they deem unconstitutional. States are not defying federal law out of rebellion; they are navigating its retreat.²⁸ The resulting legal regime is one of governance by default. Federal laws persist, but without institutional backing. State law fills the gap—not as a supplement to national coherence, but as its substitute. Yet the remnants of federal supremacy still bind. Dormant statutes, disused regulations, and unrevoked executive orders continue to exert symbolic, financial, and legal pressure.²⁹ The legacy of federal illegality produces what might be called contingent

²⁵ Bulman-Pozen, *supra* note 21, at 1082.

²⁶ *Id.*

²⁷ Metzger, *supra* note 8, at 425–26 (arguing that federal supremacy relies on effective coordination among Congress, agencies, and the courts).

²⁸ *Cooper v. Aaron*, 358 U.S. 1, 18 (1958) (“No state legislator or executive or judicial officer can war against the Constitution without violating his undertaking to support it.”).

²⁹ Bulman-Pozen, *supra* note 12, at 957–60.

sovereignty: a condition in which states govern with autonomy but without security, subject to residual federal power and always vulnerable to snapback enforcement if federal priorities shift.³⁰

Post-supremacy federalism is both descriptive and diagnostic. It does not claim that this condition is inherently good or bad—it depends on the domain and perspective. In some areas, federal retreat has left a void that has been partially addressed through local regulation; in others, it has led to a collapse in access, rights, or enforcement.

Take drug policy: if you believe that creating access to medical marijuana is a public good, then federal retreat has made that possible—albeit imperfectly. Most states now regulate marijuana use, but businesses and patients remain burdened by illegality, including lack of insurance coverage and punitive tax burdens, among other challenges. In this domain, federal retreat enables limited access, but without support, coherence, or protection. Whether that same retreat benefits reproductive healthcare depends on how one understands the rights at stake. For some, state-led expansion secures dignity and autonomy. For others, federal absence has exposed the fragility of rights. Post-supremacy federalism does not resolve that tension—it creates the unstable conditions in which it must be fought over.

Other domains expose different risks. In public education and environmental protection, federal statutes such as Title IX and the Clean Air Act remain on the books, but enforcement has receded.³¹ This has left essential public functions vulnerable to inconsistency and fragmentation. Whether or not state governments attempt to fill the gap, the coordinated national response is gone. This vacuum will benefit some and harm others. If you believe public education should be inclusive, federal retreat is alarming. If you believe the costs of environmental regulation outweigh its benefits, retreat may feel long overdue. The same structure enables both outcomes.

These laws still constrain. They retain residual power—but they no longer stop state divergence. They may reemerge, but for now, they govern through a spectral presence: casting a long shadow without providing structure or support. Post-supremacy federalism captures this ambiguity. It names the moment in which federal governance has receded without relinquishing control, leaving legal actors to improvise in its wake. In this new dynamic, state governments will not be merely resisting or negotiating federal authority. They are governing in the vacuum—alone, exposed, and improvising. And in doing so, they may be reshaping American federalism from the ground up.³²

II. PART II: THE HOLLOWING OF FEDERAL GOVERNANCE

This Part does not offer a unified causal theory. Instead, it maps the multiple institutional forces behind the erosion of federal enforcement capacity. Post-

³⁰ Gluck, *supra* note 8, at 1998–99 (discussing operational federalism through institutional enforcement, not formal doctrine).

³¹ Title IX of the Educational Amendments of 1972, 20 U.S.C. §§ 1681–1688; Clean Air Act of 1970, 42 U.S.C. §§ 7401–7671q; *West Virginia v. EPA*, 597 U.S. 697, 706–35 (2022) (limiting agency authority under the major questions doctrine).

³² Bulman-Pozen, *supra* note 15, at 1921–22 (describing how states have become “co-administrators and even co-legislatures” in federal statutory schemes).

supremacy federalism does not arise from a discrete event or doctrinal break, but from the cumulative effect of structural failures across the judiciary, the administrative state, Congress, and the executive branch. These dynamics are not reducible to one ideology or method, but together they expose the growing gap between formal supremacy and functional governance.

A. Judicial Realignment: Selective Supremacy

One dimension of federal retreat is judicial realignment: a shift not in the presence of judicial power, but in its function. The federal judiciary has not withdrawn from governance. It has reoriented it—expanding federal supremacy in some areas (notably, religious liberty and firearms), while hollowing it out in others (such as reproductive rights, civil rights enforcement, and agency deference).³³ The result is not consistent withdrawal, but selective assertion: a pattern in which the courts uphold supremacy where it aligns with ideological commitments and abdicate it where enforcement would constrain them.³⁴

The federal courts have not retreated from power—they have reoriented its use. As Leah Litman argues in *Lawless: How the Supreme Court Runs on Conservative Grievance, Fringe Theories, and Bad Vibes*, recent decisions do not reflect restraint or disengagement, but a reordering of priorities—often achieved through the abandonment of precedent and the recalibration of constitutional meaning.³⁵ Stephen Vladeck’s work on the shadow docket underscores that this shift is not merely substantive, but also procedural: the Court increasingly resolves major national disputes without full briefing or transparent reasoning, destabilizing the conditions for principled enforcement.³⁶ David Pozen’s theory of constitutional bad faith offers a further lens, suggesting that doctrinal reasoning often masks political ends. This is not judicial retreat. It is strategic realignment.³⁷

³³ See Richard Schragger, Micah Schwartzman & Nelson Tebbe, *Reestablishing Religion*, 92 U. CHI. L. REV. 199, 225–27 (2025) (describing the Supreme Court’s adoption of “structural preferentialism” as a doctrinal shift that privileges religion in both exemptions and benefits and analyzing its political entrenchment); see generally *Kennedy v. Bremerton Sch. Dist.*, 597 U.S. 507 (2022); *Carson v. Makin*, 596 U.S. 767 (2022); *N.Y. State Rifle & Pistol Ass’n v. Bruen*, 597 U.S. 1 (2022) (expanding religious-liberty and Second Amendment protections); *Dobbs v. Jackson Women’s Health Org.*, 597 U.S. 215, 352 (2022) (overturning *Roe v. Wade*); *Students for Fair Admissions, Inc. v. President & Fellows of Harvard Coll.*, 600 U.S. 181 (2023) (restricting affirmative-action); Reva B. Siegel, *Memory Games: Dobbs’s Originalism as Anti-Democratic Living Constitutionalism—and Some Pathways for Resistance*, 101 TEX. L. REV. 1127, 1129–31 (2023) (arguing that the Court’s reasoning in *Dobbs* reflects a discretionary and ideologically driven use of federal power that destabilizes national rights); Jacob D. Charles, *The Dead Hand of a Silent Past: Bruen, Gun Rights, and the Shackles of History*, 73 DUKE L.J. 67, 74–75 (2023); Metzger, *supra* note 20, at 8–9.

³⁴ See, e.g., *West Virginia v. EPA*, 597 U.S. at 706–35 (limiting agency authority under the major-questions doctrine).

³⁵ See generally LITMAN, *supra* note 19.

³⁶ STEPHEN VLADECK, *THE SHADOW DOCKET: HOW THE SUPREME COURT USES STEALTH RULINGS TO AMASS POWER AND UNDERMINE THE REPUBLIC* 219–20 (2023).

³⁷ Pozen, *supra* note 21, at 893–900.

Scholars have shown how constitutional doctrine increasingly reflects cultural and political asymmetries. The Court has extended the reach of federal supremacy in ideologically favored domains—expanding free exercise protections, invalidating state gun restrictions, and interpreting national norms through a culturally conservative lens.³⁸ At the same time, it has hollowed out enforcement in other areas, such as abortion rights, environmental regulation, and civil rights, where federal law remains on the books but lacks force. The result is not federal absence, but a transformed mode of judicial governance: one that fragments federal coherence and reframes enforcement as a site of cultural and political contestation.³⁹

B. Administrative Collapse: Losing Capacity to Govern

For decades, the federal administrative state has served as the backbone of national regulation and enforcement—implementing statutory mandates, translating legislative goals into regulatory programs, and maintaining continuity across shifting political administrations. That backbone is now under siege. Once-routine functions have been disrupted by political sabotage, budgetary contraction, and hostile judicial oversight. This is not ordinary bureaucratic dysfunction; it is structural retreat.

The creation of the Department of Government Efficiency (DOGE) in January 2025 marked a turning point. Formed by executive order and led by Elon Musk, DOGE was tasked with maximizing governmental efficiency.⁴⁰ In practice, it became a vehicle for a sweeping administrative purge. Embedded teams of young tech operatives—many with limited public sector experience—were dispatched across agencies with wide-ranging authority to terminate contracts, override internal processes, and recommend mass terminations.⁴¹ Within weeks, federal employment had dropped by an estimated 12%, and entire programs—including long-standing research and grant-making arms—were dismantled under the banner of anti-DEI compliance.⁴²

The consequences are profound. DOGE-led purges gutted institutional memory, stripped regulatory capacity, and chilled basic governance functions. At the IRS, thousands of recently hired enforcement agents were fired despite clear evidence that they generated net revenue for the government.⁴³ At USAID, foreign aid was

³⁸ See *Kennedy*, 597 U.S. at 509–11; *Carson*, 596 U.S. at 767–68; *Bruen*, 597 U.S. at 8–11 (expanding religious-liberty and Second Amendment protections).

³⁹ See MARY ANNE FRANKS, *THE CULT OF THE CONSTITUTION* (2020) (critiquing the selective constitutionalism of gun and speech rights); Micah Schwartzman & Nelson Tebbe, *Establishment Clause Appeasement*, 2019 SUP. CT. REV. 271, 295–301 (2020) (documenting asymmetric concessions in religious liberty doctrine).

⁴⁰ Benjamin Wallace-Wells, *What Did Elon Musk Accomplish at DOGE?*, NEW YORKER (June 16, 2025), <https://www.newyorker.com/magazine/2025/06/23/what-did-elon-musk-accomplish-at-doge>.

⁴¹ *Id.*

⁴² *Id.*

⁴³ *Id.*

suspended mid-crisis, triggering a chaotic evacuation in Kinshasa.⁴⁴ DOGE also moved to take control of independent agencies like the U.S. Institute of Peace, forcibly removing leadership and changing locks until a federal court ruled the action unlawful.⁴⁵

The Supreme Court's July 2025 order in *AFGE v. Trump*, issued without full briefing or oral argument on its emergency docket, further entrenched this administrative collapse. In an unsigned ruling, the Court lifted a nationwide injunction and allowed the administration to proceed with mass layoffs across nineteen federal agencies. The decision held that executive reorganization orders were likely to be lawful even absent congressional action, which effectively nullified longstanding civil service protections. Like other recent shadow docket interventions, *AFGE* enabled sweeping structural change without the procedural safeguard that normally accompanies such consequential decisions.⁴⁶

This is not ordinary bureaucratic dysfunction or an attack on a certain domain. It is an expansive structural retreat. Enforcement capacity has not merely degraded; it has been strategically dismantled, often as part of broader political efforts to weaken federal oversight. The agencies (mostly) remain, but their ability to act has been stripped.

C. *Legislative Paralysis and Statutory Drift*

If judicial realignment reflects a shift in which federal norms the courts choose to elevate or suppress, and administrative retreat reflects capacity loss, legislative paralysis reflects a more visible form of retreat: abandonment.

Congress retains the power to legislate but increasingly fails to do so in many key domains. Some legislative gaps reflect extreme polarization and institutional dysfunction. The failure to codify reproductive rights before or after *Dobbs*,⁴⁷ the inability to enact meaningful climate legislation, the absence of a coherent national drug policy, and the stalling of federal data privacy legislation⁴⁸ all point to a Congress that is either unwilling or unable to respond to other forms of federal retreat. In other

⁴⁴ *Id.*

⁴⁵ *Id.*

⁴⁶ *Trump v. Am. Fed'n of Gov't Emps.*, 145 S. Ct. 2635, 2642 (2025) (Sotomayor, J., dissenting) ("No one seriously disputes that, if implemented, Executive Order No. 14210 will lead to enormous real-world consequences. This executive action promises mass employee terminations, widespread cancellation of federal programs and services, and the dismantling of much of the Federal Government as Congress has created it What one person (or President) might call bureaucratic bloat is a farmer's prospect for a healthy crop, a coal miner's chance to breathe free from black lung, or a preschooler's opportunity to learn in a safe environment.").

⁴⁷ Amanda Becker, *Why Didn't Congress Codify Abortion Rights?*, 19TH (Jan. 26, 2022, at 10:40 ET), <https://19thnews.org/2022/01/congress-codify-abortion-roe/> (explaining repeated congressional efforts and failures to pass federal protections for abortion following *Dobbs*).

⁴⁸ Cameron F. Kerry, *Is There Hope for Privacy Legislation in This Congress?*, BROOKINGS (Mar. 27, 2024), <https://www.brookings.edu/articles/is-there-hope-for-privacy-legislation-in-this-congress/> ("Despite numerous expressions of desire to pass privacy legislation, no vehicle . . . is in sight at this late stage of the 118th Congress.").

domains such as education, civil rights enforcement, and healthcare for the most vulnerable, Congress has allowed vital programs to languish without update or reinvestment.⁴⁹ As David Pozen has noted, this kind of gridlock can have a hydraulic effect: When Congress fails to act, the federal executive often does more on its own—not less—shifting policy through unilateral action.⁵⁰ But such executive action is often unstable, reversible, and procedurally thin, amplifying the volatility of federal enforcement rather than resolving it.

While legislative gridlock is often viewed as politics-as-usual or even as a constitutional feature, its effects are structurally significant. Congress is not just failing to act; it is failing to reconcile federal law with federal reality. In a moment when other branches are reshaping the balance of power, this inaction allows outdated or dormant statutes to persist unchallenged, statutes that still carry the weight of federal supremacy but lack responsive legislative grounding. The result is a legal landscape where federal law may still bind but no longer governs.

This vacuum invites state intervention not only as a matter of necessity but as a form of improvisational governance. When federal legislative commitments go unrenewed, states step in—sometimes to uphold abandoned values, sometimes to reverse them entirely. The cumulative result is fragmentation: a federal system in which the law grows increasingly disconnected from the lived conditions of American public life.

D. *Executive Rule-by-Decree*

The one branch of government still visibly “doing things” is the executive—but even here, the mode of governance has changed. Executive orders and administrative memos have become the primary tools of federal policy. These tools now function not as bridges between the branches, but as substitutes for legislative or regulatory consensus. These tools are reversible, unstable, and often lack the infrastructure to support real enforcement. Presidential turnover now brings abrupt reversals in federal

⁴⁹ See Leighton Ku et al., *How Medicaid and SNAP Cutbacks in the “One Big Beautiful Bill” Would Trigger Big and Bigger Job Losses Across States*, COMMONWEALTH FUND (June 23, 2025), <https://www.commonwealthfund.org/publications/issue-briefs/2025/jun/how-medicaid-snap-cutbacks-one-big-beautiful-bill-trigger-job-losses-states> (analyzing projected harm from proposed Medicaid cuts, including service loss for vulnerable groups and state-level economic damage).

⁵⁰ See Daryl J. Levinson & David E. Pozen, *Disconsents*, 126 COLUM. L. REV. 1 (2026) (discussing how congressional gridlock can drive greater executive unilateralism rather than inaction).

position on abortion funding,⁵¹ environmental policy,⁵² education guidelines,⁵³ and more. Each administration builds governance through temporary scaffolding, only to have it dismantled by the next.⁵⁴ This reflects a deeper shift in how federal authority is exercised. These patterns resemble “asymmetric constitutional hardball”: One party routinely exploits legal levers to entrench power while the other remains bound by institutional norms.⁵⁵ The result is a mode of executive governance that is structurally corrosive. This dynamic has only intensified in an era of appropriations presidentialism, where executive control over federal funding substitutes for legislative consensus and deepens the instability of national governance.⁵⁶

E. The Result: Fragmented Supremacy and Legal Uncertainty

Taken together, these trends produce the condition this Article names: post-supremacy federalism. As federal power retreats, federal supremacy remains formally intact, but its enforcement infrastructure collapses. Courts no longer ensure national protection. Agencies lack the capacity to implement mandates. Congress stands still. Presidents rule by fiat. The result is not the disappearance of federal authority, but its fragmentation. Supremacy persists in law yet no longer structures governance in a coherent or predictable way. In its place, states inherit the burden of rule—not through defiance, but by necessity. This is not nullification; it is governance in the vacuum left behind.⁵⁷

⁵¹ Alice Miranda Ollstein & Carmen Paun, *Trump Signs Anti-Abortion Policies After Speaking to March for Life*, POLITICO (Jan. 24, 2025, at 19:52 ET), <https://www.politico.com/news/2025/01/24/trump-issues-executive-orders-reviving-anti-abortion-policies-00200212>.

⁵² Matthew Daly, *Biden Restores Federal Environmental Regulations Scaled Back by Trump*, PBS NEWS (Apr. 19, 2022, at 12:58 PM ET), <https://www.pbs.org/newshour/politics/biden-restores-federal-environmental-regulations-scaled-back-by-trump>.

⁵³ Lexi Lonas Cochran, *Department of Education Undoes Biden’s Title IX Rules on Gender*, HILL (Jan. 31, 2025, at 12:48 ET), <https://thehill.com/homenews/education/5118925-trump-biden-title-ix-education-gender-lgbtq/>.

⁵⁴ To be sure, there is turnover in every administration, but dismantling the career civil service is new.

⁵⁵ See generally Joseph Fishkin & David E. Pozen, *Asymmetric Constitutional Hardball*, 118 COLUM. L. REV. 915 (2018) (describing how one side of the political spectrum increasingly engages in norm erosion while the other does not).

⁵⁶ See Matthew B. Lawrence et al., *Appropriations Presidentialism*, 114 GEO. L.J. ONLINE 1, 15 (2025); see also Daniel Deacon, *Ad Law Reading Room: “Appropriations Presidentialism,”* by Lawrence, Pasachoff, and Price, YALE J. ON REGUL.: NOTICE & COMMENT (Apr. 28, 2025), <https://www.yalejreg.com/nc/ad-law-reading-room-appropriations-presidentialism-by-lawrence-pasachoff-and-price/> (summarizing the authors’ argument that presidents increasingly use appropriations control to bypass legislative stalemates and unilaterally direct federal governance).

⁵⁷ Cf. Bulman-Pozen & Gerken, *supra* note 22, at 1258–59 (describing how states may dissent from federal policy within cooperative regimes); David S. Rubenstein, *Delegating*

As this Article is being finalized, Congress is in the midst of what will likely be the longest government shutdown in American history with no end in sight.⁵⁸ This moment magnifies the dynamics discussed above. Without a functioning Congress, the executive branch has seized the opportunity to continue the project of dismantling federal agencies and capturing the funding power.⁵⁹ As federal program funding dries up, states are declaring states of emergency and trying to step in so that people don't go hungry.⁶⁰ Similar funding challenges will also slow the judiciary.⁶¹ This reality is catalyzing the need for states to get creative to fill the gap left by a retreating federal government and is likely to have ongoing effects on the new federalism dynamic.

III. PART III: THE ARCHITECTURE OF POST-SUPREMACY FEDERALISM

If one embraces that American federalism is entering a new era, at least in some core areas of public law, a logical next question is whether this phenomenon will spread and what its consequences will be. Not every domain of law will meet the criteria set out below. But the institutional shifts that give rise to post-supremacy federalism are not confined to a single policy area. This section now outlines the underlying structure of this legal condition.

Supremacy?, 65 VAND. L. REV. 1125, 1130–35 (2012) (arguing that federal supremacy may be diluted by devolving enforcement authority). This Article's framework differs: Where earlier scholars focused on active resistance or delegation, post-supremacy federalism describes a condition in which enforcement power itself has receded, leaving states to govern in the absence of federal capacity.

⁵⁸ Stephen Collinson, *What's Happening to End the Government Shutdown? Nothing*, MSN (Oct. 21, 2025), <https://www.msn.com/en-us/news/other/what-s-happening-to-end-the-government-shutdown-nothing/ar-AA1ORhwv?ocid=BingNewsSerp>.

⁵⁹ An attempt at continuing to reduce federal administrative capacity during the government shutdown is being litigated. Andrea Hsu, *Judge Indefinitely Halts Shutdown Layoffs Noting Human Toll*, NPR (Oct. 29, 2025, at 11:41 ET), <https://www.npr.org/2025/10/28/nx-s1-5585083/government-shutdown-trump-rif-layoffs>.

⁶⁰ For example, Jennifer Millman & Associated Press, *NY Declares State of Emergency, with Federal Shutdown Set to Halt SNAP Benefits*, NBC N.Y. (Oct. 30, 2025, at 11:49 ET), <https://www.nbcnewyork.com/new-york/ny-state-emergency-snap-benefits-food-stamps-ebt-card-hochul-money-trump-administration/6411785/>; *Delaware Governor Declares State of Emergency So SNAP Benefits Can Continue Amid Government Shutdown*, YAHOO!NEWS (Oct. 30, 2025, at 08:19 ET), <https://www.yahoo.com/news/articles/delaware-governor-declares-state-emergency-121949208.html>; Pat Thomas, *Governor Declares State of Emergency to Provide Hunger Relief During Shutdown*, WDBJ (Oct. 23, 2025, at 12:42 ET), <https://www.wdbj7.com/2025/10/23/governor-declares-state-emergency-provide-hunger-relief-during-shutdown/>; *Federal Government Shutdown Threatens SNAP Food Aid as Several States Scramble to Help*, U.S. NEWS. (Oct. 29, 2025), <https://www.usnews.com/news/best-states/california/articles/2025-10-29/federal-government-shutdown-threatens-snap-food-aid-as-several-states-scrabble-to-help>.

⁶¹ Nate Raymond, *US Courts Set to Run Out of Money, Begin Furloughs as Shutdown Lingers*, REUTERS (Oct. 17, 2025), <https://www.reuters.com/legal/government/us-courts-set-run-out-money-begin-furloughs-shutdown-lingers-2025-10-17/>.

A. *The Structural Logic of Post-Supremacy Federalism*

The framework of post-supremacy federalism is not a collection of unrelated episodes or a reaction to a single moment. The erosion of federal supremacy did not begin in 2025, or even 2017. Recent events have accelerated the collapse of federal enforcement, but the underlying foundation has been cracking for decades. This Article uses the term *architecture* to describe the structural scaffolding that makes post-supremacy federalism a persistent governance condition, not a temporary phase.

Post-supremacy federalism arises when three structural criteria are met: (1) statutory persistence—federal law remains formally in force; (2) enforcement retreat—federal enforcement has durably receded or collapsed; and (3) no formal devolution—states govern without a formal transfer of power.

Three criteria define the condition. But they are made possible by deeper institutional forces, including administrative collapse and enforcement asymmetry—which help explain why this governance pattern is emerging across distinct domains—and why it is likely to endure, even as political leadership changes. They also differentiate post-supremacy federalism from earlier models like dual federalism, cooperative federalism, or even uncooperative federalism. This is not a negotiated reallocation of power—it is a structural drift born of federal retreat.

1. Statutory Persistence

The first feature is the continued presence of federal statutes that are no longer being actively enforced. In each of the domains explored in this Article—marijuana, education, environmental law, and abortion—federal law continues to assert authority, even when enforcement has receded. The Controlled Substances Act has not been repealed. The Comstock Act remains on the books. Title IX continues to bind school systems. Environmental statutes like the Clean Air Act still authorize sweeping regulations. But in practice, enforcement has receded.⁶²

This creates a distinctive legal condition: federal law exists and binds in theory, but not in function. Instead of shaping behavior through active governance, these statutes operate as dormant threats. States and private actors are not guided by federal norms—they are left to assess risk, calculate exposure, and govern around the possibility of snapback. This form of legal persistence without predictable enforcement is a hallmark of post-supremacy federalism. It is not the absence of federal supremacy: it is the presence of federal law without active federal governance.

2. Administrative Collapse

The second feature is the collapse of federal enforcement capacity. Even where statutory authority remains intact, the institutions responsible for carrying it out have been gutted. Some agencies, like the Department of Education, are being dismantled outright. Others, like the EPA or FDA, remain formally in place but have been hollowed out by disinvestment, political interference, or judicial constraint.⁶³

⁶² See *infra* Part IV.A–D (describing persistent federal authority and enforcement retreat across multiple policy domains).

⁶³ See *supra* Part II.B–D (tracing administrative downsizing, agency defunding, and institutional dismantling).

This is not limited to one party or administration. It reflects a broader and more sustained pattern: Federal agencies increasingly lack the personnel, independence, or funding to carry out their mandates. In post-supremacy federalism, this absence of enforcement results from the practical erosion of capacity. States fill the void not because they are authorized to govern, but because no one else remains.

3. Enforcement Asymmetry

The final feature is asymmetry. Federal enforcement has not disappeared. It continues—but only sometimes, and often selectively. States may operate for years under the assumption that federal law will not be enforced, only to face sudden threats of preemption, funding clawbacks, or criminal prosecution. This creates a governance environment defined not by legal certainty, but by contingency and volatility.⁶⁴

The federal government is not absent—it is unstable. It governs not through sustained regulation, but through sporadic assertion. The result is a legal regime in which states are not sovereign actors, but provisional ones. Their authority is constrained by dormant statutes, disused regulations, and shifting interpretations that may resurface at any time. This asymmetry undermines institutional planning and public trust, while reinforcing fragmentation and precarity.

Together, these three features—statutory persistence, administrative collapse, and enforcement asymmetry—form the architecture of post-supremacy federalism. They explain why the same governance pattern shows up in multiple domains, even when the underlying policy content or political dynamics vary. This is not federalism as we’ve known it. It is not a stable or principled allocation of authority—it is governance improvised in the shadow of abandonment.

B. *The Snapback Threat and Contingent Sovereignty*

Post-supremacy federalism does not confer true autonomy on the states. It reflects the incomplete withdrawal of federal enforcement, not a deliberate handoff of power. The result is a governance vacuum—not a stable realignment. States now govern in domains where federal law still claims jurisdiction—even when the federal government no longer enforces. The result is a condition of contingent sovereignty: States act as primary regulators, but always under the looming possibility that federal supremacy might reassert itself. Their authority is not secured—it is borrowed, provisional, revocable.

The risk is not hypothetical. In each of the domains examined in this Article, the threat of sudden federal intervention—what this Article calls *snapback*—remain real. Marijuana operators remain vulnerable to prosecution under the CSA, even when fully compliant with state law. The IRS continues to apply Section 280E, imposing punitive tax burdens on state-legal businesses.⁶⁵ In reproductive healthcare, the Comstock Act still criminalizes the mailing of abortion-related materials, and anti-abortion advocates

⁶⁴ See *infra* Part V (analyzing the consequences of enforcement asymmetry and institutional drift).

⁶⁵ See 26 U.S.C. § 280E (disallowing business expense deductions for entities “trafficking in controlled substances” prohibited under federal law, including marijuana, regardless of state legality).

are urging federal enforcement.⁶⁶ The Biden administration's invocation of EMTALA to require emergency abortion care has already triggered backlash and litigation, signaling that future administrations could take even more aggressive steps.⁶⁷ In education and environmental law, federal oversight remains legally binding but operationally unstable. Funding conditions, waiver approvals, and civil rights protections remain technically in force—but their enforcement shifts with political winds.⁶⁸

This uncertainty is not incidental—it is a defining feature of post-supremacy federalism. States are not acting with full legal authority. They are left to manage exposure, not exercise sovereignty. Federal supremacy has not been renounced or revised. It has simply retreated—temporarily, selectively, and incompletely. The threat of snapback undermines long-term planning, chills innovation, and weakens institutional trust.

This distinguishes post-supremacy federalism from earlier models. It is not cooperative federalism, where states share responsibility with an active federal partner.⁶⁹ Nor is it uncooperative federalism, where states resist federal mandates.⁷⁰ It is a system hollowed out at the center, where the federal government retains theoretical control but no longer delivers enforcement, partnership, or clarity. Here, states are not resisting, they are governing alone, without invitation or protection. Their authority is not sovereign. It is contingent.

While this Part has outlined the structural features of post-supremacy federalism—statutory persistence, administrative collapse, and enforcement asymmetry—those features alone do not tell us where or how the condition manifests in practice. To identify domains where post-supremacy federalism is present, this Article uses three criteria: (1) federal law remains formally intact; (2) federal enforcement has durably receded or collapsed; and (3) no formal devolution of authority to the states has occurred. These criteria distinguish post-supremacy governance from negotiated federalism or routinely regulatory friction. They provide a framework for recognizing

⁶⁶ See 18 U.S.C. §§ 1461–62 (prohibiting the mailing of “every article or thing designed, adapted, or intended for producing abortion”). Although long dormant, these provisions have been cited by anti-abortion advocates as grounds to restrict the mailing of FDA-approved abortion medication. The applicability of the Comstock Act to lawful medical use remains contested.

⁶⁷ See 42 U.S.C. § 1395dd (requiring hospitals that receive Medicare funding to provide emergency medical care, including stabilizing treatment for pregnant patients). Federal guidance has interpreted EMTALA to require emergency abortion care where medically necessary, but courts have split on its scope, and its enforcement has varied across administrations. See *supra* Part III.B (discussing EMTALA litigation and the withdrawal of HHS guidance following political and legal pressure).

⁶⁸ See *supra* Parts IV.B–C (describing the erosion of federal enforcement in education and environmental law, including shifts in civil rights oversight, grant funding, and regulatory waivers).

⁶⁹ Philip J. Weiser, *Towards a Constitutional Architecture for Cooperative Federalism*, 79 N.C.L. REV. 663, 665 (2001) (defining cooperative federalism as a system where federal and state governments work together to implement a federal regulatory scheme).

⁷⁰ Bulman-Pozen & Gerken, *supra* note 22, at 1258–59.

how this condition emerges not as a legal doctrine, but as a lived structure of governance. The next Part examines how the structures came to be—tracing the hollowing out of federal enforcement capacity across judicial, administrative, legislative, and executive domains.

The next Part applies these criteria to examine how post-supremacy federalism unfolds across distinct policy domains.

IV. PART IV: CASE STUDIES IN POST-SUPREMACY FEDERALISM

This Part presents four case studies—drug policy, public education, environmental protection, and abortion—that illustrate how post-supremacy federalism operates in practice. In each domain, federal authority persists in law but fails in execution, producing a structural shift in who governs and how. This is not federalism by design. It is governance by necessity.

Each case meets the three defining conditions of post-supremacy federalism introduced in Part II:

1. **Persistent Formal Federal Authority:** Federal statutes and regulations remain in force, and agencies continue to assert jurisdiction in theory. Supremacy is codified, even if not operational. This residual authority still binds or chills—what this Article describes as the *snapback threat*: the looming possibility that dormant federal power could be reactivated at any time, creating instability for those who rely on state law in its absence.
2. **Durable Retreat of Federal Enforcement:** Federal enforcement no longer functions in practice. This retreat may stem from judicial realignment, administrative collapse, or political abandonment. What was once a coherent federal policy regime is now fragmented, dormant, or absent. This is the condition of *federal retreat*—not mere inaction, but sustained withdrawal of enforcement capacity.
3. **No Formal Devolution of Power:** The federal government has not transferred authority to the states through legislation or negotiated handoff. Control is still asserted on paper but has been abdicated in practice. The result is a condition of *contingent sovereignty*: states govern in the vacuum not with clear or secure authority, but under the lingering shadow of federal supremacy that could reassert itself without warning.

These criteria distinguish post-supremacy federalism from negotiated devolution, regulatory overlap, or routine friction. They mark a governance condition: binding in law, hollow in implementation. In each of the following domains, governance shifts not by invitation, but by default—triggered by the collapse of federal enforcement. These case studies reflect not only some of the most contested areas of American law, but also the clearest early sites of this emerging structural condition. Each case study applies the three criteria, then considers the governance consequences of federal retreat—some already visible, others still unfolding—as states confront legal uncertainty in the vacuum left behind.

A. Drug Policy

Marijuana⁷¹ law provides a paradigmatic example of post-supremacy federalism: Enforcement has broken down in practice, even as federal authority remains legally intact, leaving states to govern a prohibited domain by default. Consequently, most of the country now lives in jurisdictions where marijuana—a federally illegal drug—is regulated, taxed, and openly sold.⁷² Marijuana law is also a case in which the legacy of federal action continues to distort the present, for example through punitive tax laws,⁷³ revealing how retreat creates legal fragility and structural asymmetry.

The modern architecture of federal drug law was not constructed to accommodate pluralism. It was designed to centralize control. The Controlled Substances Act (CSA) of 1970, enacted as part of President Nixon’s declaration of a “War on Drugs,” imposed sweeping uniformity: it classified cannabis as a Schedule 1 substance and criminalized even simple possession.⁷⁴ This punitive turn emerged not from a public health emergency, but as a political project—one that weaponized federal law to target racialized communities under the guise of neutrality.⁷⁵ As Michelle Alexander has argued, the War on Drugs operated as a modern caste system, stripping millions—

⁷¹ The term “marijuana” has a well-documented history of racialized usage, originating in early 20th-century anti-Mexican and anti-Black drug enforcement campaigns. *See* ISAAC CAMPOS, *HOME GROWN: MARIJUANA AND THE ORIGINS OF MEXICO’S WAR ON DRUGS* 229–35 (2012); Jonathan Hudak, *Marijuana’s Racist History Shows the Need for Comprehensive Drug Reform*, BROOKINGS (June 23, 2020), <https://www.brookings.edu/articles/marijuanas-racist-history-shows-the-need-for-comprehensive-drug-reform/>; Matt Thompson, *The Mysterious History of ‘Marijuana’*, NPR (July 22, 2013, at 11:46 ET), <https://www.npr.org/sections/codeswitch/2013/07/14/201981025/the-mysterious-history-of-marijuana>. While some advocates and scholars prefer “cannabis” as a less stigmatizing alternative, this Article uses “marijuana” where necessary to reflect the terminology of federal law—particularly the Controlled Substances Act—and to distinguish it from “hemp,” which the 2018 Farm Bill defines as cannabis containing no more than 0.3% THC. *See* 7 U.S.C. § 1639o(1).

⁷² As of 2025, marijuana is legal in some form in 48 states, the District of Columbia, and several U.S. territories. *See* Alex Kreit, *Federal Nonenforcement in the Face of State Drug Policy Reforms*, 21 OHIO ST. J. CRIM. L. 239, 239–41 (2024) (describing breadth of state legalization efforts); *see also* Erwin Chemerinsky et al., *Cooperative Federalism and Marijuana Regulation*, 62 UCLA L. REV. 74, 78–79 (2015) (noting proliferation of state marijuana reforms despite federal prohibition).

⁷³ *See* I.R.C. § 280E (disallowing deductions for businesses trafficking in controlled substances, including state-legal marijuana); Chemerinsky et al., *supra* note 72, at 100–01 (describing tax burdens and legal uncertainty under federal law).

⁷⁴ 21 U.S.C. § 812(c) (Schedule I classification of cannabis); *see also* 21 U.S.C. §§ 841–844 (criminal penalties); Chemerinsky et al., *supra* note 72, at 87–89 (describing the CSA’s classification of marijuana and associated penalties).

⁷⁵ *See* MICHELLE ALEXANDER, *THE NEW JIM CROW: MASS INCARCERATION IN THE AGE OF COLORBLINDNESS* 97 (rev. ed. 2012) (arguing that the War on Drugs was a political strategy targeting communities of color rather than a response to rising drug crime).

disproportionately Black and Brown—of the right to vote, access to housing, and the right to participate fully in civil society.⁷⁶

Federal criminalization was paired with financial incentives. Programs like the Edward Byrne Memorial Justice Assistance Grant Program offered federal funding for drug arrests—but not for violent crimes.⁷⁷ Civil asset forfeiture laws enabled police departments to seize property in drug investigations and retain a percentage of the proceeds, even absent a conviction.⁷⁸ These structures aligned state enforcement with federal priorities, accelerating mass incarceration and militarizing local policing.⁷⁹

Despite this consolidation of federal power, state-level reform began to spread. In 1996, California voters passed Proposition 215, legalizing the use and cultivation of cannabis for medical purposes and creating an affirmative defense for patients and providers.⁸⁰ Over the following decades, other states followed—first with loosely structured models, then with more formal licensing and regulatory frameworks. Colorado established the first comprehensive medical access program in 2010; by 2012, both Colorado and Washington had legalized cannabis for general adult use.⁸¹ These developments were met with federal resistance, including DEA raids and criminal prosecution, reinforced by *Gonzales v. Raich*, which upheld Congress' power to prohibit marijuana under the CSA.⁸² Yet, in the last two decades, state efforts to legalize marijuana—and now psychedelics—have only increased.⁸³ Though federal authority was formally upheld, enforcement receded in practice. The criteria that follow illustrate how drug policy exemplifies post-supremacy federalism.

1. Persistent Formal Federal Authority

Federal law remains unequivocal. Under the CSA, marijuana is classified as a Schedule 1 drug—defined as having no accepted medical use and a high potential for

⁷⁶ *Id.* at 1–96 (describing the racialized consequences of drug enforcement and the resulting loss of civil rights for people with convictions).

⁷⁷ *See id.* at 59–96 (explaining how the Byrne grant funding created financial incentives for local police to prioritize drug arrests over more serious crimes).

⁷⁸ *See id.* (detailing how civil asset forfeiture laws allowed law enforcement to seize property from individuals never charged with a crime and retain the assets for departmental budgets).

⁷⁹ *Id.*

⁸⁰ *See* Chemerinsky et al., *supra* note 72, at 85 (describing Proposition 215 and its effect as the first medical marijuana law in the U.S.).

⁸¹ Connor Burns & Jay Wexler, *American Edibles: How Cannabis Regulatory Policy Reshapes Prohibitionist Fears and What to Do About It*, 44 SEATTLE U. L. REV. 915, 937 (2021).

⁸² *Gonzales v. Raich*, 545 U.S. 1, 22 (2005) (holding that Congress has authority under the Commerce Clause to prohibit local cultivation and use of marijuana, even when in compliance with state law).

⁸³ *See* Kreit, *supra* note 72, at 252–58.

abuse.⁸⁴ Possession, cultivation, and distribution are categorically prohibited.⁸⁵ In 2018, Congress created an exemption for hemp⁸⁶ via the Federal Farm Bill, but marijuana remains federally criminalized. No provision of federal law incorporates the regulatory framework states have built. There is no statutory exception that permits federal inaction—only the informal practice of nonenforcement.⁸⁷ Federal supremacy persists in form, even as it becomes functionally hollow. The snapback threat—dormant but ever present—creates legal ambiguity, chills investment, and limits certainty for regulated actors.

2. Durable Retreat of Federal Enforcement

While authority endures on paper, enforcement has receded—unevenly and informally, shaped by judicial intervention, administrative guidance, and political ambivalence. The retreat began in the courts. In *Conant v. Walters*, the Ninth Circuit held that the federal government could not punish physicians for recommending medical marijuana.⁸⁸ Administrative guidance followed. The DOJ's Ogden Memo⁸⁹ and Cole Memo⁹⁰ advised federal prosecutors to deprioritize enforcement against state-compliant actors. Although the Session Memo⁹¹ rescinded this guidance, it triggered no widespread crackdown, reflecting the political cost—and logistical implausibility—of reviving full enforcement.⁹²

Congress later reinforced this retreat through appropriations. In 2014, after years of debate, Congress passed the Rohrabacher-Farr Amendment, prohibiting the DOJ from spending funds to interfere with state-legal medical marijuana programs.⁹³ The

⁸⁴ 21 U.S.C. § 812(c)(10).

⁸⁵ 21 U.S.C. § 841(a)(1).

⁸⁶ The 2018 Farm Bill defines “hemp” as “the plant *Cannabis sativa L.* and any part of that plant, including the seeds thereof and all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers, whether growing or not, with a delta-9 tetrahydrocannabinol concentration of not more than 0.3 percent on a dry weight basis.” 7 U.S.C. § 1639o(1).

⁸⁷ See Kreit, *supra* note 72, at 253–54; Robert A. Mikos, *The Evolving Federal Response to State Marijuana Reforms*, 26 WIDENER L. REV. 1, 4 (2020).

⁸⁸ *Conant v. Walters*, 309 F.3d 629, 632–33 (9th Cir. 2002).

⁸⁹ Memorandum from David W. Ogden, Deputy Att’y Gen., U.S. Dep’t of Just., to Selected U.S. Att’ys (Oct. 19, 2009) (on file with the Department of Justice).

⁹⁰ Memorandum from James M. Cole, Deputy Att’y Gen., U.S. Dep’t of Just., to all U.S. Att’ys (Aug. 29, 2013) (on file with the Department of Justice).

⁹¹ Memorandum from Jefferson B. Sessions, III, Att’y Gen., U.S. Dep’t of Just., to all U.S. Att’ys (Jan. 4, 2018) (on file with the Department of Justice).

⁹² See Kreit, *supra* note 72, at 272–90.

⁹³ Consolidated and Further Continuing Appropriations Act, 2015, Pub. L. No. 113-235, § 538, 128 Stat. 2130, 2217 (2014).

rider was reauthorized annually through 2025.⁹⁴ These measures do not legalize or decriminalize the conduct; they merely restrict enforcement. Meanwhile, federal enforcement against adult-use programs (which now exist in two dozen states) has remained practically nonexistent.⁹⁵ What remains is not federal permission but sustained federal withdrawal.

3. No Formal Devolution of Power

Despite this enforcement retreat, there has been no formal reallocation of authority to the states. Congress has not amended the CSA to accommodate state reform, nor has it enacted proposals like the STATES 2.0 Act that would codify non-enforcement or delegate control.⁹⁶ The continued reintroduction of federal proposals to change the legal status of marijuana under the CSA underscores that the jurisdiction over marijuana policy remains federally defined—even if not federally enforced. Supremacy remains formally intact, even as it dissolves in function.

The resulting system reflects state-led governance without federal sanction or support. States construct and oversee elaborate licensing schemes, compliance rules, testing protocols, and tax structures for cannabis—without federal support, protection, or partnership. Occasionally, federal agencies assert themselves. The FDA issues warning letters over CBD product labeling; the USPTO denies trademark protection for marijuana products. But for the most part, federal institutions do not act. This federal silence has become normalized. In New Mexico, which authorized psilocybin services in 2025, the question of federal illegality is no longer even part of policy debates. Reliance on non-enforcement of federal drug laws is no longer exceptional; it is the operating condition.⁹⁷ Still, the snapback threat remains.

4. Consequences: Legal Precarity and Regulatory Asymmetry

Even as enforcement recedes, the shadow of federal illegality persists. Federal illegality creates ongoing challenges for state-regulated businesses, especially in the

⁹⁴ Ben Stevens, *US State Medical Cannabis Markets in 'Dire Jeopardy' as Critical Federal Protections Dropped by Trump*, BUS. OF CANNABIS (June 9, 2025), <https://businessofcannabis.com/us-state-medical-markets-in-dire-jeopardy-as-critical-federal-protections-dropped-by-trump/>. Though this rider was not reauthorized in 2025, there has been no marked increase in federal enforcement against state legal medical marijuana operators. This reality aligns with the theory of post-supremacy federalism which relies on persistence of law but functional nonenforcement.

⁹⁵ See Kreit, *supra* note 72, at 239–40.

⁹⁶ STATES 2.0 Act, H.R. 2934, 119th Cong. (2025).

⁹⁷ This default extends beyond marijuana. Recent state-level initiatives around psychedelics—including Oregon's psilocybin program, Colorado's regulated natural medicine framework, and emerging religious freedom litigation—illustrate how non-enforcement is quietly structuring access to federally prohibited substances across multiple domains. While this Article focuses on cannabis, the framework developed here could be extended to include psychedelics, particularly in therapeutic and religious contexts.

areas of taxation, intellectual property, and insurance.⁹⁸ Even if the proposed rule to reschedule marijuana to Schedule III was finalized, these challenges would remain. Rescheduling would not legalize commercial activity, align federal law with state programs, or eliminate existing federal penalties for participation in state-legal cannabis markets.⁹⁹ Scholars have emphasized that while rescheduling might ease barriers to research and medical prescribing, it offers little clarity or security for the vast majority of actors operating in conflict with federal law.¹⁰⁰

While federal guidance technically permits banks to serve marijuana businesses, few do—deterred by regulatory complexity, reputational risk, and lack of legal certainty.¹⁰¹ Individual consumers and workers face additional risks: A parent can lose custody of a child for lawful medical cannabis use;¹⁰² a federal employee or contractor can be disciplined or terminated for a positive drug test;¹⁰³ immigrants can face detention or deportation based on lawful participation in state programs.¹⁰⁴ These residual constraints illustrate the unstable sovereignty of state governance in this domain. States govern alone, but not securely. Federal power may be dormant but it is not disavowed—and it can be reactivated without warning. At any time, the DOJ could, in theory, initiate a federal snapback—reviving enforcement of the CSA—and begin prosecuting store owners, patients, caregivers, and others who have relied on the apparent stability of state law. This is the defining risk of post-supremacy: Authority lingers even after enforcement fades.

⁹⁸ See I.R.C. § 280E (denying business deductions for Schedule I or II drug trafficking); TMEP § 907 (refusing registration for marijuana-related goods/services).

⁹⁹ Victoria Litman, *What You Need to Know About Marijuana Rescheduling*, BILL OF HEALTH (May 28, 2024), <https://petrieflom.law.harvard.edu/2024/05/28/what-you-need-to-know-about-marijuana-rescheduling/>.

¹⁰⁰ Robert A. Mikos, *The False Promise of Rescheduling*, 60 TULSA L. REV. 1, 19–23 (2024).

¹⁰¹ See *BSA Expectations Regarding Marijuana-Related Businesses*, FIN. CRIMES ENF'T NETWORK (Feb. 14, 2014), <https://www.fincen.gov/resources/statutes-regulations/guidance/bsa-expectations-regarding-marijuana-related-businesses>; Maria Brosnan, *GAO Forming Cannabis Business Focus Groups*, CRB MONITOR, <https://news.crbmonitor.com/2024/12/gao-forming-cannabis-business-focus-groups/> (last visited Apr. 2, 2026).

¹⁰² Lauren Vinopal, *Divorce, Family Court, and Legal Weed Don't Mix Well*, FATHERLY (July 27, 2022), <https://www.fatherly.com/parenting/can-parents-lose-custody-over-marijuana-use-california> (reporting that parents in California have lost custody or faced child protective services intervention due to lawful medical marijuana use, despite state legalization).

¹⁰³ Memorandum from Kathleen M. McGettigan, Acting Dir., Off. of Pers. Mgmt., for Heads of Exec. Dep'ts & Agencies (Feb. 25, 2021) (on file with the Office of Personnel Management).

¹⁰⁴ See, e.g., *Medina-Rodríguez v. Barr*, 979 F.3d 738, 742 (9th Cir. 2020) (holding that a noncitizen's state marijuana conviction rendered him removable under federal immigration law); IMMIGRANT LEGAL RES. CTR., *IN THE WEEDS: A DEEP DIVE ON CANNABIS & IMMIGRATION* 5 (2023) (explaining that even lawful cannabis use or employment can result in deportation or inadmissibility due to federal prohibition).

5. Why Drug Policy Exemplifies Post-Supremacy Federalism

Drug policy exemplifies post-supremacy federalism by meeting all three defining conditions: federal authority persists in statute, enforcement has receded in practice, and no formal reallocation of power has occurred. Supremacy remains intact on paper, but federal governance has effectively withdrawn. In the vacuum, states have developed complex regulatory regimes without federal partnership, protection, or permission. The result is a domain defined by legal uncertainty, regulatory asymmetry, and ongoing vulnerability to federal snapback. What began as state-level defiance has matured into a default model for governance under federal retreat—one that increasingly characterizes other areas of American public law.

Drug policy illustrates how federal retreat can give rise to a full-fledged governance regime in a domain where states once played a marginal role. But not all areas of law have had as much time to evolve in response to retreat. In some domains, the collapse of federal enforcement exposes structural fragilities that states are only now beginning to recognize. Public education presents a different pattern: Here, post-supremacy federalism emerges not through dramatic legal reform, but through the quiet erosion of civil rights enforcement—leaving behind a vacuum that remains unstable, fragmented, and unresolved.

B. Public Education

Public education illustrates how post-supremacy federalism can emerge even in domains where the state rule has always been substantial, especially when federal civil rights enforcement weakens or disappears. While states have long controlled curriculum and school governance, the federal government has historically shaped educational opportunity through civil rights enforcement and conditional spending. Statutes like Title IX of the Education Amendments of 1972,¹⁰⁵ Title VI of the Civil Rights Act of 1964,¹⁰⁶ the Individuals with Disabilities Education Act (IDEA),¹⁰⁷ and Title I of the Elementary and Secondary Education Act¹⁰⁸ established a federal architecture designed to ensure access, equity, and accountability in public schools. The Department of Education (DOE), through offices such as the Office of Civil Rights and the Office of Special Education Programs, has served as the primary enforcer of these mandates—investigating discrimination complaints, distributing funds, and ensuring that states comply with federal civil rights requirements tied to education.

¹⁰⁵ 20 U.S.C. §§ 1681–1688 (prohibiting sex discrimination in federally funded education programs and activities).

¹⁰⁶ 42 U.S.C. §§ 2000d–2000d-7 (prohibiting discrimination on the basis of race, color, or national origin in federally assisted programs).

¹⁰⁷ 20 U.S.C. §§ 1400–1482 (guaranteeing a free appropriate public education to children with disabilities and setting procedural safeguards for enforcement).

¹⁰⁸ 20 U.S.C. §§ 6301–6579 (providing financial assistance to schools with high concentrations of low-income students to support academic achievement and equal access).

That infrastructure is now collapsing. In 2025, the DOE is being systematically dismantled through mass layoffs, suspended enforcement, and funding freezes.¹⁰⁹ On July 14, the U.S. Supreme Court granted emergency relief in *McMahon v. New York*, allowing the federal government to proceed with over 1,400 DOE layoffs—many from the civil rights enforcement units—following an executive order to streamline DOE operations.¹¹⁰ In dissent, Justice Sotomayor warned that the ruling “will unleash untold harm,” depriving students of protections against discrimination, sexual assault, and other violations Congress intended the Department to address.¹¹¹ The following day, a \$6.8 billion freeze on Congressionally authorized education grants triggered multistate litigation.¹¹² Though this funding was ultimately released, the threat of defunding, other grant denials, and consequences of the government shutdown have further destabilized the federal role in public education.¹¹³

This retreat did not begin with the Trump administration. As Derrick Black has documented, the rollback of federal education authority was already underway during the Obama administrations, particularly following backlash to civil rights enforcement initiatives and the reauthorization of the Elementary and Secondary Education Act as the Every Student Succeeds Act (ESSA) in 2015.¹¹⁴ What began as negotiated retrenchment has since accelerated into strategic withdrawal. As federal enforcement recedes, states are no longer merely shaping curriculum, they are redefining civil rights

¹⁰⁹ See *infra* notes 111–15 and accompanying text.

¹¹⁰ Exec. Order No. 14242, 90 Fed. Reg. 13679 (Mar. 20, 2025) (directing the Secretary of Education to streamline the Department and begin transitioning functions to states and other federal agencies, with the ultimate goal of closing the Department of Education).

¹¹¹ *McMahon v. New York*, 145 S. Ct. 2643, 2657 (2025) (Sotomayor, J., dissenting) (order granting stay).

¹¹² See John Kruzel, *US Supreme Court Clears Way for Trump to Gut Education Department*, REUTERS (July 14, 2025), <https://www.reuters.com/legal/litigation/us-supreme-court-clears-way-trump-gut-education-department-2025-07-14/>; Mark Lieberman, *Two Dozen States Sue Trump Over \$6.8 Billion School Funding Freeze*, EDUC. WK. (July 14, 2025), <https://www.edweek.org/policy-politics/two-dozen-states-sue-trump-over-6-8-billion-school-funding-freeze/2025/07>.

¹¹³ This litigation was ultimately successful with the \$6 billion of funding being unfrozen. Arthur Jones II et al., *Trump Administration Releasing \$6 Billion in Education Funding It Withheld*, ABC NEWS (July 25, 2025, at 17:50 ET), <https://abcnews.go.com/Politics/trump-administration-releasing-6-billion-education-funding/story?id=124079177>. But states, for example Rhode Island, are still experiencing funding cuts that result from lost grant funding. See Ava Stryker-Robbins, *RI Education Department Releases Special Education Blueprint Amid Federal Funding Cuts*, BROWN DAILY HERALD (Oct. 26, 2025, at 21:38 ET), <https://www.browndailyherald.com/article/2025/10/ri-education-department-releases-special-education-blueprint-amid-federal-funding-cuts>.

¹¹⁴ See generally Derek W. Black, *Abandoning the Federal Role in Education: The Every Student Succeeds Act*, 105 CALIF. L. REV. 1309, 1311–13 (2017) (tracing how ESSA curtailed federal oversight following resistance to Obama-era civil rights enforcement in public education).

protections, resource allocation, and the meaning of equal educational opportunity itself.

1. Persistent Formal Federal Authority

Although federal enforcement capacity has withered, the legal architecture of federal education authority remains intact. Core civil rights statutes—including Title IX, Title VI, IDEA, and Title I—continue to govern public education,¹¹⁵ and the DOE retains formal oversight responsibilities through the Office of Civil Rights (OCR).¹¹⁶ The federal government has not disavowed its jurisdiction over civil rights in education; it continues to assert statutory authority, condition federal funding on compliance, and maintain regulatory infrastructure—even as that infrastructure has been gutted in practice.

Executive Order 14242 signaled a formal retreat, directing the Secretary to streamline the Department and begin transitioning functions to states and other agencies.¹¹⁷ Yet, no legal authority has been repealed. Federal nondiscrimination laws remain on the books and OCR’s jurisdiction formally exists. Even so, the Department has wielded its remaining funds as a pressure point. In February 2025, DOE issued a Dear Colleague letter and accompanying certification requirements, directing states and school districts to affirm that they had ended “illegal DEI practices” or risk losing Title I funds—which are critical to low-income schools.¹¹⁸ Despite widespread backlash and preliminary injunctions in Maryland, New Hampshire, and D.C. issued in March and April—which blocked the directive as unconstitutionally vague and ultra vires¹¹⁹—the episode illustrates a powerful residual level: The federal government can still chill policy through the threat of withholding funds, even when actual enforcement capacity is diminished.

This residual authority is not benign. Because federal civil rights laws and funding conditions remain binding, schools and state agencies face legal ambiguity about what counts as compliance and who will enforce it. Rapid policy reversals, from trans student protections to DEI enforcement, create shifting risk and confusion.¹²⁰

¹¹⁵ See Title IX of the Education Amendments of 1972, 20 U.S.C. §§ 1681–1688; Title VI of the Civil Rights Act of 1964, 42 U.S.C. §§ 2000d–2000d-7; Individuals with Disabilities Education Act (IDEA), 20 U.S.C. §§ 1400–1482; Title I of the Elementary and Secondary Education Act, 20 U.S.C. §§ 6301–6579.

¹¹⁶ *Office for Civil Rights*, U.S. DEP’T OF EDUC., <https://www.ed.gov/about/ed-offices/ocr> (last visited Apr. 2, 2026).

¹¹⁷ Exec. Order No. 14242, 90 Fed. Reg. 13679 (Mar. 20, 2025).

¹¹⁸ See Collin Binkley, *K–12 Schools Must Sign Certification Against DEI to Receive Federal Money, Administration Says*, AP NEWS (Apr. 3, 2025, at 18:11 ET), <https://apnews.com/article/7d1025753b9bd924711ace4069fca399>.

¹¹⁹ See Nate Raymond, *US Judges Block Trump’s Ability to Withhold School Funds Over DEI*, REUTERS (Apr. 24, 2025, at 20:35 ET), <https://www.reuters.com/legal/us-judge-limits-trumps-ability-withhold-school-funds-over-dei-2025-04-24/>.

¹²⁰ U.S. DEP’T OF JUST. & U.S. DEP’T OF EDUC., DEAR COLLEAGUE LETTER ON TRANSGENDER STUDENTS: NOTICE OF LANGUAGE ASSISTANCE (2016) (interpreting Title IX to protect

Supremacy remains still binding in form, but its boundaries are unstable and its enforcement unpredictable—leaving states and schools to operate in a prolonged zone of legal uncertainty.

2. Durable Retreat of Federal Enforcement

Federal enforcement of civil rights has not merely weakened—it has been structurally dismantled in ways that will be difficult, if not impossible, to restore. On March 11, 2025, Secretary Linda McMahon eliminated nearly 50% of the DOE’s workforce, including entire divisions such as the Office of English Language Acquisition, most of the Office of Civil Rights’ regional staff, and key units responsible for IDEA and Title I funding.¹²¹ The mass terminations were carried out without an analysis of statutory obligations, without the legally required 90-day notice to Congress, and without a transition plan for core civil rights and funding programs.¹²² One former Secretary attested that “the Department cannot meet its statutory obligations at the levels of staffing proposed”¹²³

The Supreme Court acknowledged these facts in *McMahon v. New York*, but nonetheless lifted the district court’s preliminary injunction, allowing the mass layoffs to proceed.¹²⁴ Justice Sotomayor’s dissent warned that “the Department will not be able to carry out its statutory functions[,] and in some cases, is already unable to do so,” concluding that the Executive has effectively “seized for itself the power to repeal federal law by way of mass terminations[.]”¹²⁵ She underscored that the decision “will unleash untold harm, delaying or denying educational opportunities and leaving

transgender students and permit access to facilities aligned with gender identity); U.S. DEP’T OF JUST. & U.S. DEP’T OF EDUC., DEAR COLLEAGUE LETTER: NOTICE OF LANGUAGE ASSISTANCE (2017) (rescinding 2016 guidance and returning discretion to schools); Enforcement of Title IX With Respect to Discrimination Based on Sexual Orientation and Gender Identity, 86 Fed. Reg. 32637 (June 22, 2021) (codified in 34 C.F.R.) (announcing Biden administration’s interpretation of Title IX to cover sexual orientation and gender identity); Craig Trainor, Assistant Sec’y, U.S. Dep’t of Educ. Off. Civ. Rts., Opinion Letter (Feb. 4, 2025) (on file with the Department of Education Office for Civil Rights) (reinstating Trump-era rule narrowing Title IX to biological sex); Erica Meltzer, *Federal Judge Tosses Biden Title IX Rules That Protected Transgender Students*, CHALKBEAT (Jan. 9, 2025, at 20:53 ET), <https://www.chalkbeat.org/2025/01/10/judge-tosses-title-ix-rules-from-biden-in-blow-to-lgbtq-students> (reporting court’s nationwide vacatur of the Biden administration’s Title IX protections for LGBTQ+ students).

¹²¹ Press Release, U.S. Dep’t of Educ., U.S. Department of Education Initiates Reduction in Force (Mar. 11, 2025) (on file with the Department of Education).

¹²² *Id.*

¹²³ *McMahon v. New York*, 145 S. Ct. 2643, 2648 (2025) (Sotomayor, J., dissenting) (order granting stay) (“Former Secretary of the Department attesting ‘the Department cannot meet its statutory obligations at the levels of staffing proposed by the Defendants[.]’”)

¹²⁴ *Id.* at 2644.

¹²⁵ *Id.* at 2649.

students to suffer from discrimination, sexual assault, and other civil rights violations without the federal resources Congress intended.”¹²⁶

These consequences are not easily reversible. Once civil rights staff are terminated, regional offices shuttered, and enforcement pipelines dismantled, the DOE cannot simply resume operations—even if political leadership changes. The loss of institutional memory, expertise, and infrastructure creates a lasting gap in federal capacity. What once operated as a coherent federal policy regime has been hollowed out. Enforcement formally exists but no longer functions. Experts have warned that this retreat will especially harm students with disabilities, English language learners, and low-income communities, who rely most heavily on federal enforcement and funding mechanisms.¹²⁷

3. No Formal Devolution of Power

There has been no formal reassignment of federal educational authority to the states. Congress has not repealed Title IX, Title VI, IDEA, or Title I.¹²⁸ The DOE still exists, and the federal government continues to assert jurisdiction over education through regulation and conditional spending. But the practical effect of administrative rollback and political volatility is that states have assumed great control—not through negotiation or statute, but through federal retreat. This is not cooperative federalism. There has been no transfer of enforcement mechanisms, funding guarantees, or legal responsibility from federal to state hands. Instead, the DOE has effectively abandoned its role as enforcer and equalizer while maintaining legal supremacy in name. As DOE Secretary McMahon has made clear, the DOE’s “final mission” is to eliminate bureaucratic oversight and restore education to the states—not through legislative repeal, but through operational attrition.¹²⁹ In this vacuum, states are left to govern unevenly. Some have expanded protections for trans students, multilingual learners, or children with disabilities. Others have restricted them. The result is fragmentation without formal devolution: federal authority remains codified but no longer mediates or equalizes disparities across state lines.

These divergent responses are no longer buffered by a stable federal baseline. Florida, Texas, and Oklahoma have passed laws restricting classroom discussion of

¹²⁶ *Id.* at 2652.

¹²⁷ Kings Floyd et al., *How Gutting the U.S. Department of Education Would Hurt Students and Their Families*, CENTURY FOUND. (Feb. 12, 2025), <https://tcf.org/content/commentary/how-gutting-the-u-s-department-of-education-would-hurt-students-and-their-families>.

¹²⁸ See Title IX of the Education Amendments of 1972, 20 U.S.C. §§ 1681–1688; Title VI of the Civil Rights Act of 1964, 42 U.S.C. §§ 2000d–2000d-7; Individuals with Disabilities Education Act (IDEA), 20 U.S.C. §§ 1400–1482; Title I of the Elementary and Secondary Education Act, 20 U.S.C. §§ 6301–6579.

¹²⁹ Linda McMahon, *Secretary McMahon: Our Department’s Final Mission*, U.S. DEP’T OF EDUC. (Mar. 3, 2025), <https://www.ed.gov/about/news/speech/secretary-mcmahon-our-departments-final-mission> (declaring that “the elimination of bureaucratic bloat . . . [is] our final mission” and calling for the return of educational authority to the states).

race, gender, and sexuality, banning books, and punishing DEI initiatives.¹³⁰ Most notably, Florida's Stop Woke Act (also known as the Parental Rights in Education Act) limits how educators can discuss systemic racism, gender identity, and sexuality in K–12 classrooms.¹³¹ Other states have moved in the opposite direction. Illinois mandates that public schools teach the contributions of LGBTQ+ individuals in history and social studies.¹³² California and other states have enacted similar laws requiring affirmative inclusion of LGBTQ+ history and identity in K–12 curricula.¹³³ Book regulation further underscores this divergence. Texas has passed legislation empowering school boards and local committees to remove “harmful” or “indecent” books from school libraries.¹³⁴ In contrast, states like New Jersey and Rhode Island have enacted laws—such as the Freedom to Read Act—that prohibit book bans and shield librarians from legal or professional retaliation.¹³⁵ The meaning of equal protection in education now depends on geography.

This divergence is no longer buffered by a consistent federal baseline. As federal civil rights enforcement recedes, states are not just asserting cultural preferences—they are redefining the rights, narratives, and legal frameworks that govern public education. It remains to be seen whether states that reject federal protection will construct alternative systems of oversight or simply allow protections to wither. In the meantime, the legal floor has fractured. Schools now operate under radically different governance regimes depending on their state's political alignment—not because Congress transferred authority, but because federal enforcement has collapsed.

4. Consequences: Legal Precarity and Regulatory Asymmetry

Even as federal enforcement recedes, states and school districts remain constrained by the legal architecture of supremacy. This creates a climate of profound legal precarity. Federal civil rights statutes are dormant but not repealed. As the DOE is

¹³⁰ See Parental Rights in Education (Don't Say Gay Law), FLA. STAT. ANN. § 1001.42(8)(c) (West 2025); TEX. EDUC. CODE ANN. § 28.0022 (West 2025) (restricting instruction on race and sex); OKLA. STAT. ANN. tit. 70 § 24-157 (West 2026).

¹³¹ See Parental Rights in Education (Don't Say Gay Law), FLA. STAT. ANN. § 1001.42(8)(c) (West 2025).

¹³² Inclusive Curriculum Law, 105 ILL. COMP. STAT. 5/2-3.155 (2019).

¹³³ FAIR Education Act, CAL. EDUC. CODE § 51204.5 (West 2026); see also Sabia Prescott, *Six States Have Now Passed LGBTQ+ Inclusive Curriculum Legislation—Each with a Different Definition of 'Inclusion'*, NEW AM.: BLOG (June 17, 2021), <https://www.newamerica.org/education-policy/edcentral/six-states-have-now-passed-lgbtq-inclusive-curriculum-legislationeach-with-a-different-definition-of-inclusion/>.

¹³⁴ S.B. 13, 89th Leg., Reg. Sess. (Tex. 2025); see Pavan Acharya, *Texas Senate Approves Bill Changing How Schools Select Library Books*, TEX. TRIBUNE (Mar. 19, 2025, at 21:43 CT), <https://www.texastribune.org/2025/03/05/texas-school-library-book-bans-senate-bill/>.

¹³⁵ Freedom to Read Act, ch. 96, 2024 N.J. LAWS 2–4 (codified as amended at N.J. STAT. 18A:34A-4); The Freedom to Read Act, 29 R.I. GEN. LAWS § 29-9-3 (2026); see also Janine L. Weisman, *Gov. McKee Signs Freedom to Read Act into Law*, OCEAN STATE MEDIA (July 7, 2025), <https://www.ripbs.org/education/gov-mckee-signs-freedom-to-read-act-into-law>.

streamlined and possibly eliminated, it is not clear which federal agencies will have formal oversight over many key education policies.

This uncertainty leaves states and school districts in a climate of legal precarity. Obligations that go unenforced today could be revived tomorrow. The threat of snapback enforcement—via administrative reinterpretation, litigation, or shifts in political power—casts a long shadow. School officials, uncertain of what rules apply or who will enforce them, will default to symbolic compliance, legal overcaution, or self-censorship.

This ambiguity is compounded by the strategic use of federal spending power. The executive branch has paired its anti-DEI agenda with funding threats, demanding certification of ideological conformity as a condition for continued financial support.¹³⁶ Though some of these efforts have been enjoined,¹³⁷ the episode reveals how the mere threat of withholding funds can chill policy innovation and reshape local priorities. These tensions have produced a wave of litigation. Attorneys general in over a dozen states have sued the DOE and DOJ to block any federal civil rights enforcement related to DEI, gender identity, or so-called “critical race theory”—arguing that such enforcement imposes unconstitutional conditions on education funding.¹³⁸ Meanwhile, actual funding for public education continues to decline. The result is a patchwork regime, where legal obligations are unstable, enforcement is unpredictable, and public education is governed by fear more than clarity.

5. Why Education Exemplifies Post-Supremacy Federalism

Public education illustrated how post-supremacy federalism can emerge even in domains where states have long exercised primary control. What is new is not state involvement, but the vacuum left by the collapse of federal civil rights enforcement and the pullback of federal spending. As federal protections wither, or remain embedded in statute but unenforced, states have become the primary authors of rights and restrictions in education.

This is not federalism by design; it is governance improvised in absence. It is not a negotiated reallocation of authority, but a structural abdication. Federal supremacy persists in law, but states are left to navigate contested constitutional terrain alone—without clear guidance, enforcement, or partnership. Education, like drug policy, reveals the legal and institutional fragility of a system in which federal power retreats without relinquishing control—leaving states to fill the void under conditions of uncertainty, asymmetry, and risk.

¹³⁶ Melissa Quinn, *Trump Administration Threatens Public Schools’ Federal Funding Over DEI Initiatives*, CBS NEWS (Apr. 3, 2025, at 14:22 ET), <https://www.cbsnews.com/news/trump-threatens-public-schools-federal-funding-dei-initiatives/>.

¹³⁷ Holly Ramer & Collin Binkley, *Judges Block Trump Push to Cut Funding to Public Schools Over Diversity Programs*, AP NEWS (April 24, 2025, at 18:42 ET), <https://apnews.com/article/trump-public-schools-diversity-equality-inclusion-dei-7d7ad707d91565753263a19ebde044e0>.

¹³⁸ See Susan Carpenter, *19 Attorneys General Sue Education Department Over K-12 DEI Compliance*, SPECTRUM NEWS (Apr. 25, 2025, at 17:15 ET), <https://spectrumlocalnews.com/nc/triad/education/2025/04/25/education-department-dei-compliance-ag-lawsuit> (describing coalition of 19 state AGs filing suit in D. Mass.).

The next case study turns to environmental law, where post-supremacy takes shape through a familiar pattern: Statutory authority persists on paper, but enforcement has collapsed—revealing the structural consequences of federal withdrawal. As in education, the federal government retains jurisdiction but lacks the institutional capacity or political will to implement it. Agencies are hollowed out. Regulations languish. Statutory tools remain on the books, but their force has faded. The result is a fragile and fragmented system in which state innovation fills the void of federal retreat—but does so in the shadow of dormant supremacy.

C. Environmental Protection

Environmental protection offers a revealing test of post-supremacy federalism in action. It has long been governed through robust federal regulations, anchored by landmark statutes like the Clean Air Act (CAA), Clean Water Act (CWA), and the National Environmental Policy Act (NEPA), and implemented by a sprawling administrative apparatus within the Environmental Protection Agency (EPA).¹³⁹ For decades, this framework positioned the federal government as the lead actor in responding to pollution, climate threats, and environmentally related public health threats.¹⁴⁰

That era is ending. Under the second Trump administration, environmental governance has not simply weakened—it has been strategically dismantled. Through judicial constraints, regulatory rollbacks, and executive attrition, federal supremacy remains intact on paper but inert in practice. What remains is not a coordinated system of governance, but a structural void—statutory authority without institutional capacity.¹⁴¹

1. Persistent Formal Federal Authority

Statutory authority remains extensive. The EPA still has jurisdiction to regulate air pollutants under the CAA, wetlands under the CWA, and impact review under NEPA.¹⁴² No major environmental statutes have been repealed. Federal supremacy in this domain remains formally unquestioned.¹⁴³ But enforcement capacity has

¹³⁹ Clean Air Act of 1970, 42 U.S.C. §§ 7401–7671q; Federal Water Pollution Control Act (Clean Water Act) of 1948, 33 U.S.C. §§ 1251–1388; National Environmental Policy Act of 1970, 42 U.S.C. §§ 4321–4370m-12.

¹⁴⁰ Jody Freeman & Daniel A. Farber, *Modular Environmental Regulation*, 54 DUKE L.J. 795, 805–10 (2005) (describing the EPA’s central role in crafting and enforcing national environmental policy through flexible regulatory structures).

¹⁴¹ Hannah J. Wiseman, *Delegation and Dysfunction*, 35 YALE J. ON REGUL. 233, 244–51 (2018) (examining how fragmented and inconsistent enforcement mechanisms limit both federal and state environmental governance).

¹⁴² Clean Air Act of 1970, 42 U.S.C. §§ 7401–7671q; Federal Water Pollution Control Act (Clean Water Act) of 1948, 33 U.S.C. §§ 1251–1387; National Environmental Policy Act of 1970, 42 U.S.C. §§ 4321–4370h.

¹⁴³ Daniel A. Farber, *Environmental Federalism in a Global Economy*, 83 VA. L. REV. 1283, 1311 (1997).

collapsed. The federal government continues to assert legal authority even as it abandons meaningful implementation.

2. Durable Retreat of Federal Enforcement

The collapse has come in layers. In *West Virginia v. EPA*, the Supreme Court sharply curtailed the agency's ability to regulate power plant emissions invoking the "major questions doctrine."¹⁴⁴ In *Sackett v. EPA*, the Court narrowed the definition of federally protected wetlands under the CWA.¹⁴⁵ These decisions constrict the scope of environmental authority precisely when bold federal action is most needed.¹⁴⁶

Regulatory retreat has accelerated under EPA administrator Lee Zeldin.¹⁴⁷ In the first 100 days of the second Trump administration, over thirty Biden-era environmental rules were repealed, including vehicle emissions standards, mercury regulations, and environmental justice guidelines.¹⁴⁸ On July 18, 2025, the EPA eliminated its Office of Research and Development and laid off approximately 23% of its staff, including hundreds of scientists and public health experts.¹⁴⁹ That same day, it paused coal ash enforcement and granted two-year exemptions to coal, iron ore, and chemical plants under the banner of national security.¹⁵⁰ These actions are not minor regulatory shifts. They are structural withdrawals. The cuts have severed institutional memory, gutted scientific capacity, and disrupted regulatory continuity.

¹⁴⁴ *West Virginia v. EPA*, 597 U.S. 697, 724 (2022).

¹⁴⁵ *Sackett v. EPA*, 598 U.S. 651, 684 (2023).

¹⁴⁶ Andrew Freedman, *This Is the Summer of Flooding Across the U.S., and Scientists Know Why*, CNN (July 20, 2025), <https://www.cnn.com/2025/07/20/climate/summer-of-flooding>; Piers Forster & Debbie Rosen, *Only 3 Years Left—New Study Warns the World Is Running Out of Time to Avoid the Worst Impacts of Climate Change*, CONVERSATION (July 20, 2025, at 00:20 ET), <https://theconversation.com/only-3-years-left-new-study-warns-the-world-is-running-out-of-time-to-avoid-the-worst-impacts-of-climate-change-261229>.

¹⁴⁷ Lisa Friedman, *How Lee Zeldin Went from Environmental Moderate to Dismantling the E.P.A.*, N.Y. TIMES (Mar. 30, 2025), <https://www.nytimes.com/2025/03/29/climate/lee-zeldin-epa.html>.

¹⁴⁸ Matthew Daly, *EPA Head Says He'll Roll Back Dozens of Environmental Regulations, Including Rules on Climate Change*, AP NEWS (Mar. 12, 2025, at 18:03 ET), <https://apnews.com/article/trump-epa-climate-zeldin-power-plants-feb184286a7a9419aefddce293362e6b>.

¹⁴⁹ *EPA Announces Reduction in Force, Reorganization Efforts to Save Taxpayers Nearly Three-Quarters of a Billion Dollars*, U.S. ENV'T PROT. AGENCY (July 18, 2025), <https://www.epa.gov/newsreleases/epa-announces-reduction-force-reorganization-efforts-save-taxpayers-nearly-three>.

¹⁵⁰ Matthew Daly, *Trump Offers Regulatory Relief for Coal, Iron Ore, and Chemical Industries*, AP NEWS (July 17, 2025, at 21:37 ET), <https://apnews.com/article/trump-coal-epa-clean-air-exemption-mercury-7b800db8d6cf6fffbec28039f42d2daf>; Michael Phillis, *Burning Coal Leaves Dangerous Waste. Trump's EPA Eyes Looser Rules for Handling It*, AP NEWS (April 16, 2025, at 09:33 ET), <https://apnews.com/article/trump-epa-coal-ash-rules-groundwater-pollution-52ffbba93ca19d21a37294f1d0b6348e>.

They not only undermine current oversight—they jeopardize the federal government’s ability to resume effective enforcement in the future.

That erosion now includes not just enforcement rollbacks, but efforts to dismantle the very scientific and legal foundations of environmental regulation. In July 2025, the EPA announced its intent to rescind the 2009 “endangerment finding,”¹⁵¹ which has served as the scientific and statutory basis for regulating greenhouse gas emissions under the Clean Air Act.¹⁵² The agency’s proposed justification—drafted by a small team of political appointees and longtime climate skeptics—departs sharply from established science, lacks external peer review, and has drawn sharp criticism from public health experts and environmental groups.¹⁵³ This move signals that federal enforcement authority is not merely dormant—it is actively being contested, reinterpreted, and destabilized at its root.

This retreat extends beyond the EPA. Deep cuts at the National Oceanic and Atmospheric Administration (NOAA) have dismantled satellite monitoring, climate resilience programs and public weather infrastructure.¹⁵⁴ The effects of federal retreat will be felt locally: degraded forecasting capacity, reduced hurricane tracking, and slowed early warning systems. Communities will face environmental threats—from heatwaves to hurricanes to wildfires—with less information and less time to prepare.¹⁵⁵ The result is not merely deregulation; it is the disabling of federal capacity

¹⁵¹ See Endangerment and Cause or Contribute Findings for Greenhouse Gases Under Section 202(a) of the Clean Air Act, 74 Fed. Reg. 66496 (Dec. 15, 2009) (codifying the original endangerment finding under Section 202(a) of the Clean Air Act); *Proposed Rule: Reconsideration of 2009 Endangerment Finding and Greenhouse Gas Vehicle Standards*, U.S. ENV’T PROT. AGENCY (Feb. 13, 2026), <https://www.epa.gov/regulations-emissions-vehicles-and-engines/proposed-rule-reconsideration-2009-endangerment-finding>.

¹⁵² *EPA Releases Proposal to Rescind Obama-Era Endangerment Finding, Regulations That Paved the Way for Electric Vehicle Mandates*, U.S. ENV’T PROT. AGENCY (July 29, 2025), <https://www.epa.gov/newsreleases/epa-releases-proposal-rescind-obama-era-endangerment-finding-regulations-paved-way>.

¹⁵³ Dharna Noor & Oliver Milman, *Scientists Slam Trump Administration Climate Report as a ‘Farce’ Full of Misinformation*, GUARDIAN (Aug. 1, 2025, at 12:01 ET), <https://www.theguardian.com/us-news/2025/aug/01/trump-epa-climate-change-report> (criticizing report as authored by climate skeptics, lacking external review, and misrepresenting data); Matthew Daly, *Trump EPA Moves to Repeal Landmark ‘Endangerment Finding’ That Allows Climate Regulation*, AP NEWS (July 29, 2025, at 18:42 ET), <https://apnews.com/article/trump-climate-epa-endangerment-zeldin-5cba0871c880e23d044ef40a398c57b2> (noting critics’ concerns about undermining scientific consensus).

¹⁵⁴ Seth Borenstein, *Hundreds of Weather Forecasters Fired in Latest Wave of DOGE Cuts*, AP NEWS (Feb. 27, 2025, at 22:23 ET), <https://apnews.com/article/national-weather-service-layoffs-trump-doge-a65360a1cb2500b7d47c9c966e383f4a>.

¹⁵⁵ Aaron Parseghian, *Experts Warn Proposed NOAA Research Cuts Could Impact Hurricane Forecasting*, WTSP (July 9, 2025, at 20:03 ET), <https://www.wtsp.com/article/news/regional/florida/noaa-research-cuts-hurricane-forecasting-impact/67-e2d772ea-8168-4960-90de-2bdae6cb5c87>.

to detect, monitor, and respond to environmental risks on which public safety depends.¹⁵⁶

3. No Formal Devolution of Power

Congress has not formally reassigned authority to the states. The EPA continues to assert jurisdiction. But its mandate has been hollowed out by judicial narrowing,¹⁵⁷ administrative collapse,¹⁵⁸ and executive disengagement.¹⁵⁹ Statutes persist. The agency remains. But federal enforcement is no longer reliable. It is conditional, episodic, and increasingly symbolic.

States have stepped in—not by invitation, but by necessity. Multistate efforts like the Regional Greenhouse Gas Initiative (RGGI) provided one model of state-led coordination.¹⁶⁰ Climate litigation by state attorneys general,¹⁶¹ state-level bans on hazardous chemicals,¹⁶² and stricter environmental impact review laws¹⁶³ illustrate others. But these efforts are uneven, legally precarious, and resource dependent. Without a unifying federal baseline, the meaning of environmental protection now depends on where one lives—and who governs there.

California continues to wield outsized influence. Under its CAA waiver, the state has set stricter vehicle emissions standards than federal baselines, prompting manufacturers to meet California's rules—effectively creating national standards through market forces. In May 2025, the U.S. Senate passed three Congressional Review Act (CRA) resolutions targeting waivers for California's Advanced Clean Cars II, Advanced Clean Trucks, and Heavy-Duty Low-Nox programs, signaling a

¹⁵⁶ Rachel Frazin & Zack Budryk, *NOAA Firings Spark Fears About Long-Term Damage*, HILL (Mar. 1, 2025, at 06:00 ET), <https://thehill.com/policy/energy-environment/5170268-trump-noaa-staff-cuts-concerns/>.

¹⁵⁷ *West Virginia v. EPA*, 597 U.S. 697, 735 (2022); *Sackett v. EPA*, 598 U.S. 651, 684 (2023).

¹⁵⁸ Alex Guillén & Annie Snider, *EPA Moves Ahead with Reorganization, New Buyouts*, POLITICO (July 17, 2025, at 12:44 ET), <https://www.politico.com/news/2025/07/17/environmental-protection-agency-reorganization-buyouts-00459651>.

¹⁵⁹ Wallace-Wells, *supra* note 40 (executive dismantling of agency capacity more broadly).

¹⁶⁰ *Welcome*, REG'L GREENHOUSE GAS INITIATIVE, <https://www.rggi.org/> (last visited Apr. 2, 2026).

¹⁶¹ Complaint for Abatement, Equitable Relief, and Civil Penalties; Preliminary and Permanent Injunction at 7, *State ex rel. Bonta v. Exxon Mobil Corp.*, No. CGC-23-608845 (Cal. Super. Ct. Sep. 23, 2024); Louis Sahagún, *California Sues Five Major Oil Companies for 'Decades-Long Campaign of Deception' About Climate Change*, L.A. TIMES (Sep. 17, 2023, at 12:12 PT), <https://www.latimes.com/california/story/2023-09-16/california-sues-five-major-oil-companies-for-lying-about-climate-change>.

¹⁶² ME. REV. STAT. ANN. tit. 38, § 1614 (West 2025).

¹⁶³ N.Y. COMP. CODES R. & REGS. tit. 6, § 617.1 (2019); CAL. PUB. RES. CODE § 21000(d) (West 2026).

rare congressional effort to override EPA-granted state authority.¹⁶⁴ California has sued, arguing that CRA does not apply to waivers under established EPA and GAO precedent.¹⁶⁵ This episode reveals the fragility of state-led governance in a post-supremacy era: even long-standing waivers can be revoked—not through substantive regulatory engagement, but through streamlined procedural overrides with minimal debate.

4. Consequences: Legal Precarity and Regulatory Asymmetry

Even as states assert control, dormant federal authority casts a long shadow. The EPA retains the power to revoke California's CAA waiver, as it did in the first Trump Administration. NEPA remains law but has been narrowed and underenforced. Federal climate funding, especially tax credits under the Inflation Reduction Act (IRA) and project-based grants under the Infrastructure Investment and Job Act (IIJA), has become volatile.¹⁶⁶ Several IRA credits were repealed or curtailed under the *One Big Beautiful Bill Act*, and remaining funds are subject to executive discretion, undermining long-term planning for states and localities.¹⁶⁷

The threat of snapback is real. An incoming administration could revive dormant mandates, assert preemption, or further weaponize funding conditions. In a legal regime where states bind but do not protect, and where enforcement depends on political alignment, states do not govern freely. They govern under constraint, improvising in the shadow of federal supremacy that may reassert itself at any time.

This volatility reinforces a core dynamic of post-supremacy federalism: states do not govern with freedom or certainty. They govern alone, in the shadow of residual federal power that can reassert itself at any time. The legal regime still binds, but it no

¹⁶⁴ Act of June 12, 2025, Pub. L. No. 119-15, 139 Stat. 65; Zachary Pilchen et al., *Up in the Air: Congress Nullifies Clean Air Act Waivers for California*, HOLLAND & KNIGHT (May 23, 2025), <https://www.hklaw.com/en/insights/publications/2025/05/up-in-the-air-congress-nullifies-clean-air-act-waivers-for-california>; John L. Watson, *Battle Over California's Vehicle Air Emission Waivers Now in U.S. District Court*, SPENCER FANE (June 17, 2025), <https://www.spencerfane.com/insight/battle-over-californias-vehicle-air-emission-waivers-now-in-u-s-district-court/>.

¹⁶⁵ 'Assault on California continues': Governor Newsom Sues Trump Over Illegal Attempt to Revoke State's Clean Air Policies, GOVERNOR GAVIN NEWSOM (June 12, 2025), <https://www.gov.ca.gov/2025/06/12/assault-on-california-continues-governor-newsom-sues-trump-over-illegal-attempt-to-revoke-states-clean-air-policies/>; Joseph Winters, *The GOP Says States' Rights Matter—Unless It's California*, VOX (May 23, 2025, at 12:00 ET), <https://www.vox.com/climate/414243/senate-california-electric-vehicles-gas-car-ban-repeal>.

¹⁶⁶ See Ethan Duran, *After "Big, Beautiful" Bill Cuts Clean Energy Credits, Industry Experts Weigh in*, DAILY REP. (July 16, 2025), <https://dailyreporter.com/2025/07/16/solar-wind-tax-credits-end-2027-deadline-inflation-act/> (reporting that federal budget legislation shortened the lifespan of many IRA energy tax credits, creating uncertainty for long-term investment and state climate planning).

¹⁶⁷ Amy Turner, *The One Big Beautiful Bill Act: Considerations for Cities and Community Partners*, CLIMATE L.: SABIN CTR. BLOG (July 7, 2025), <https://blogs.law.columbia.edu/climatechange/2025/07/07/the-one-big-beautiful-bill-act-considerations-for-cities-and-community-partners/> (describing the repeal or scaling back of several IRA tax credits, including residential solar, clean vehicle, and bonus credits).

longer protects—and the risk of reversal is not hypothetical. It is lived, anticipated, and embedded into every policy decision.

5. Why Environmental Law Exemplifies Post-Supremacy Federalism

For decades, environmental protection was a domain of strong federal leadership. The EPA set national baselines, enforced compliance, and operated with the scientific and administrative capacity to lead. Federal statutes structured the field, and agencies carried them out—giving environmental law the look and feel of functional supremacy.

That model is no longer operative. Environmental law reflects how post-supremacy federalism can emerge not from formal abandonment, but from strategic narrowing, enforcement retreat, and institutional sabotage. The EPA still exists.¹⁶⁸ Environmental statutes are still enforceable. Yet, across key domains—climate, wetlands, pollution control—federal enforcement has withered, and state action now defines much of what environmental protection looks like on the ground.

But environmental harm is not always legible in the same way. Unlike in education or reproductive healthcare—where cuts and bans produce immediately visible harms—environmental erosion is diffuse, delayed, and often invisible. The consequences accumulate quietly, even as the legal scaffolding collapses beneath them.

The second Trump administration has deepened this dynamic through deliberate withdrawal and regulatory sabotage. But this mode of governance is not secure. With every change in executive administration, the federal role may reassert itself unpredictably, undermining state efforts or reversing course entirely. In this way, environmental law exemplifies post-supremacy federalism: States do not merely fill a gap; they govern under threat, in a legal regime that binds without protection. This is not a cooperative arrangement. It is governance without partnership—where legal authority exists but enforcement does not.

D. Reproductive Healthcare

While abortion law may seem distinct—typically framed as a constitutionally created right rather than a regulatory regime—it offers a revealing fourth example of post-supremacy federalism.¹⁶⁹ In the wake of *Dobbs*, federal regulatory authority remains legally present but functionally withdrawn.

¹⁶⁸ See *EPA Delivers Additional 100 Top Environmental Accomplishments, 300 Environmental Wins Now Highlighted Since President Trump Took Office in January*, U.S. ENV'T PROT. AGENCY (Nov. 21, 2025), <https://www.epa.gov/newsreleases/epa-delivers-additional-100-top-environmental-accomplishments-300-environmental-wins-1>.

¹⁶⁹ Future work in post-supremacy federalism is likely to distinguish between the varieties of federal retreat and post-supremacy federalism. The prior three case studies focused on administrative and funding retreat. This case study represents another type: federal retreat that occurs through the overruling of constitutionally created rights.

1. Persistent Formal Federal Authority

For nearly five decades, abortion access in the United States was protected by federal constitutional law. *Roe v. Wade* established a nationwide baseline in 1973, framing the right to terminate a pregnancy as a matter of substantive due process under the Fourteenth Amendment.¹⁷⁰ Even after *Roe* was overturned in *Dobbs v. Jackson Women's Health Organization*, federal law has not disappeared from the field. The Food and Drug Administration (FDA) continues to regulate medication abortion through its approval of mifepristone and misoprostol.

Meanwhile, the Comstock Act—a 19th-century federal anti-obscurity statute—has reemerged as a potential mechanism for banning the mailing of abortion-inducing drugs.¹⁷¹ Although long dormant, anti-abortion advocates have invoked the statute in litigation and public commentary as a means to prohibit the mailing of abortion-inducing drugs. These efforts aim to reanimate federal prohibitions without new congressional action, revealing that even as federal protection has receded, federal authority persists in form and may reassert itself through legacy statutes.¹⁷²

2. Durable Retreat of Federal Enforcement

The federal retreat in abortion law is primarily judicial, but it has also been driven by congressional inaction and the erosion of federal enforcement and funding. *Dobbs v. Jackson Women's Health Organization* eliminated the federal constitutional floor protecting abortion rights but did not replace that baseline with any affirmative legal protection. The result was not a reassignment of authority, but a legal vacuum. Congress failed to fill that gap, declining both before and after *Dobbs* to codify abortion rights through legislation such as the Women's Health Protection Act, which passed the House but stalled in the Senate.¹⁷³

Even before *Dobbs*, federal support for abortion access was limited. The Hyde Amendment, first enacted in 1976 and renewed annually, has long prohibited the use of federal funds for abortion in most circumstances, effectively excluding low-income patients from meaningful access.¹⁷⁴ Meanwhile, the FDA's approval of mifepristone and misoprostol remains on the books, but its authority has come under sustained legal

¹⁷⁰ *Roe v. Wade*, 410 U.S. 113, 164–65 (1973), *overruled by*, *Dobbs v. Jackson Women's Health Org.*, 597 U.S. 215 (2022).

¹⁷¹ See Comstock Act of 1873, 18 U.S.C. § 1461 (prohibiting the mailing of “every article, instrument, substance, drug, medicine, or thing” intended for producing abortion).

¹⁷² *FDA v. All. for Hippocratic Med.*, 602 U.S. 367, 396–97 (2024) (holding plaintiffs lacked standing to challenge FDA's approval of mifepristone); see also David S. Cohen et al., *Abortion Pills*, 76 STAN. L. REV. 317, 333, 342 (2024) (analyzing the legal and political challenges to medication abortion access, including efforts to invoke the Comstock Act).

¹⁷³ See generally Women's Health Protection Act of 2022, H.R. 8296, 117th Cong. (2022); see also *Dobbs*, 597 U.S. at 258.

¹⁷⁴ Pub. L. No. 94-439, § 209, 90 Stat. 1418, 1434 (1976); see also *Harris v. McRae*, 448 U.S. 297, 326–27 (1980).

challenge.¹⁷⁵ Courts have entertained efforts to revoke the FDA's longstanding discretion over medication abortion, and while the Supreme Court has recently declined to address the merits, the agency's jurisdiction remains unsettled.¹⁷⁶ On paper, FDA authority persists. In practice, it is increasingly vulnerable to judicial redefinition.¹⁷⁷

Other federal protections in reproductive healthcare have similarly eroded. Title X, the only federal grant program dedicated to family-planning services for low-income patients,¹⁷⁸ has faced severe cuts and freezes. In early 2025, the Trump Administration withheld awards for 16 grantees—including all Planned Parenthood affiliates—affecting approximately 24% of Title X service sites and jeopardizing care for over 800,000 patients.¹⁷⁹

EMTALA, the Emergency Medical Treatment and Labor Act, provides a particularly vivid example of post-supremacy strain. Enacted in 1986, EMTALA requires hospitals that accept Medicare funding to provide stabilizing treatment to all patients in medical crisis, including those for whom abortion is necessary to prevent serious harm.¹⁸⁰ Yet in states with near total abortion bans, EMTALA's applicability has become a legal battleground. In 2023, the Department of Health and Human Services (HHS) issued guidance clarifying that EMTALA requires hospitals to provide emergency abortions when medically indicated.¹⁸¹ But the agency rescinded

¹⁷⁵ *All. for Hippocratic Med.*, 602 U.S. at 396–97 (holding that plaintiffs lacked Article III standing to challenge FDA's 2016 and 2021 protocol changes for mifepristone).

¹⁷⁶ Laurie Sobel, Alina Salganicoff & Mabel Felix, *What's at Stake for Access to Medication Abortion and the FDA in the Supreme Court Case FDA v. the Alliance for Hippocratic Medicine*, KFF (Mar. 21, 2024), <https://www.kff.org/womens-health-policy/medication-abortion-fda-supreme-court-alliance-hippocratic-medicine/>.

¹⁷⁷ See Patricia J. Zettler et al., *Alliance for Hippocratic Medicine v. FDA—Dobbs's Collateral Consequences for Pharmaceutical Regulation*, 388 NEW ENG. J. MED. E29 (2023) (warning that future litigation could again disrupt FDA authority over mifepristone and other drugs).

¹⁷⁸ Chantelle Lee, *Title X Freeze Widely Threatens Health Care Access*, TIME (Apr. 11, 2025, at 09:09 ET), <https://time.com/7276543/title-x-funding-freeze-threatens-states/>.

¹⁷⁹ See Brittni Frederiksen, Ivette Gomez & Alina Salganicoff, *Title X Grantees and Clinics Affected by the Trump Administration's Funding Freeze*, KFF (Apr. 15, 2025), <https://www.kff.org/womens-health-policy/issue-brief/title-x-grantees-and-clinics-affected-by-the-trump-administrations-funding-freeze/>; Lee, *supra* note 178.

¹⁸⁰ Emergency Medical Treatment and Active Labor Act of 1986, 42 U.S.C. § 1395dd(a) (requiring hospitals receiving Medicare funds to provide emergency stabilizing care regardless of ability to pay or legal status).

¹⁸¹ U.S. DEP'T OF HEALTH & HUM. SERVS., SNAPSHOT: HOW HHS IS BUILDING A HEALTHIER AMERICA 6 (2023) (reaffirming that EMTALA protects providers offering abortion as stabilizing care in emergency medical conditions).

that guidance in May 2025 following sustained litigation and political pressure, leaving hospitals without federal direction.¹⁸²

Litigation quickly filled the void. In Idaho, where abortion is banned except to prevent the death of the pregnant person, the Biden Administration sued, arguing that EMTALA preempts state restrictions.¹⁸³ The Supreme Court initially granted certiorari in *Moyle v. United States* but later dismissed the case as improvidently granted, remanding it to the Ninth Circuit.¹⁸⁴ Meanwhile, in Texas, the Fifth Circuit upheld an injunction blocking the Biden Administration's 2023 EMTALA guidance, concluding that the federal government had likely exceeded its authority by interpreting EMTALA to require abortions in conflict with state law.¹⁸⁵ The court emphasized state sovereignty in regulating medical practice and declined to defer to the agency's interpretation.

The consequences of this legal fragmentation are profound. In Idaho, multiple pregnant patients have been airlifted to neighboring states for emergency abortion care that doctors were barred from providing locally.¹⁸⁶ These were not elective procedures; they were emergency interventions. EMTALA, a federal statute designed to guarantee equal emergency care across all hospitals, was powerless to prevent their displacement. What should have been a national baseline instead produced a pattern of legal paralysis and medical abandonment. This is what post-supremacy looks like: a federal right on paper, and a helicopter ride to another state in practice.

Together, these cases illustrate not just the contested scope of EMTALA, but also the broader deterioration of federal enforcement in reproductive healthcare. Statutes remain on the books. But courts have narrowed their reach, agencies have lost interpretative authority, and no clear national standard has emerged. What remains is not coherent federal supremacy, but a fractured regime—governed by judicial discretion, agency retreat, and administrative absence.

¹⁸² Memorandum from the Dep't of Health & Hum. Servs. on Rescinded Reinforcement of EMTALA Obligations Specific to Patients who are Pregnant or are Experiencing Pregnancy Loss (May 29, 2025) (on file with the Centers for Medicare & Medicaid Services).

¹⁸³ IDAHO CODE § 18-622(2) (2025) (permitting abortion only when “necessary to prevent the death of the pregnant woman”).

¹⁸⁴ *Moyle v. United States*, 603 U.S. 324, 325–26 (2024) (granting certiorari to address EMTALA's preemption of Idaho's abortion ban, then dismissing the writ as improvidently granted and remanding to the Ninth Circuit); Lindsay Langholz, *Moyle v. United States*, AM. CONST. SOC'Y (June 27, 2024), https://www.acslaw.org/scotus_update/moyle-v-united-states/.

¹⁸⁵ *Texas v. Becerra*, 89 F.4th 529, 545 (5th Cir. 2024) (affirming injunction against HHS guidance interpreting EMTALA to require abortion care).

¹⁸⁶ Julie Luchetta, *Idaho's Biggest Hospital Says Emergency Flights for Pregnant Patients Up Sharply*, NPR (Apr. 26, 2024, at 08:33 ET), <https://www.npr.org/2024/04/25/1246990306/>; Audrey Dutton & Kelcie Moseley-Morris, *A Health System Is Fighting Idaho's Abortion Ban. It's Not Its First Controversial Stance*, IDAHO CAP. SUN (Mar. 12, 2025, at 04:00 ET), <https://www.idahocapitalsun.com/2025/03/12/a-health-system-is-fighting-idahos-abortion-ban-its-not-its-first-controversial-stance/> (reporting that St. Luke's airlifted six pregnant patients out of state in four months following implementation of Idaho's abortion ban).

3. No Formal Devolution of Power

The Supreme Court's decision in *Dobbs v. Jackson Women's Health Organization* did not devolve authority over abortion to the states through statute, constitutional amendment, or any affirmative delegation of power. It simply vacated the federal constitutional role and withdrew judicial protection. Although Congress considered legislation to reestablish a national baseline—the Women's Health Protection Act passed the House—it ultimately failed in the Senate.¹⁸⁷ The result is not structured devolution but functional abdication: States were not formally tasked with primary responsibility for regulating abortion, yet they now define the legal terrain by default.

By contrast, Medicaid—at least as historically designed—offers a model of cooperative federalism: the federal government invites state participation, provides financial support, and sets enforceable standards.¹⁸⁸ In the wake of *Dobbs*, no such structure exists. States were not asked to opt in or implement federal policy. They were simply left to govern alone. The most recent Republican budget proposal, which seeks to cut nearly \$1 trillion from Medicaid and impose work requirements, underscored how even established cooperative frameworks are vulnerable to erosion.¹⁸⁹

Following *Dobbs*, the legal landscape surrounding abortion is not merely decentralized. It is fragmented and unstable. States have taken radically divergent approaches: some have enacted near-total bans, others have codified strong protections for access, and many fall somewhere in between. But without a unifying federal standard or coordinating mechanism, patients and providers are left navigating a structurally incoherent system.

Crossing state lines to seek care, mailing abortion pills, or providing logistical support across jurisdictions has become legally and logistically perilous. Protective states have enacted “shield laws” that bar cooperation with out-of-state investigations and refuse to enforce judgments related to lawful in-state abortion care.¹⁹⁰ Restrictive

¹⁸⁷ See generally Women's Health Protection Act of 2022, H.R. 8296, 117th Cong. (2022).

¹⁸⁸ Cf. 42 U.S.C. § 1396-1 (establishing Medicaid as a cooperative federal-state program); Nicole Huberfeld, *Federalizing Medicaid*, 14 U. PA. J. CONST. L. 431, 435–39 (2011) (describing Medicaid's cooperative federalism structure and federal oversight mechanisms).

¹⁸⁹ See *Health Provisions in the 2025 Federal Budget Reconciliation Bill*, KFF (July 8, 2025), <https://www.kff.org/tracking-the-medicaid-provisions-in-the-2025-budget-bill/> (summarizing enacted provisions cutting nearly \$1 trillion in federal Medicaid spending over the next decade and freezing eligibility); Jason Breslow & Elena Moore, *Senate GOP Passes Trump's Sweeping Policy Bill, Setting Up Decisive Vote in the House*, NPR (July 1, 2025, at 14:54 ET), <https://www.npr.org/2025/07/01/nx-s1-5450367/senate-republicans-trump-tax-bill-medicaid> (reporting passage of the “One Big Beautiful Bill,” which imposes work requirements and deep Medicaid cuts).

¹⁹⁰ See Amy Cooperstein & Amy F. Lerman, *Shielding Reproductive Freedom: Uncovering New York's Law Protecting Providers from Civil and Criminal Liability*, NAT'L L. REV. (July 16, 2025), <https://natlawreview.com/article/shielding-reproductive-freedom-uncovering-new-yorks-law-protecting-providers-civil> (summarizing statutory bar on cooperation with out-of-state abortion investigations); see also Daniel Wiessner, *New York Official Again Rebuffs Texas Judgment Against Doctor Over Abortion Pills*, REUTERS (July 14, 2025), <https://www.reuters.com/legal/government/new-york-official-again-rebuffs-texas-judgment->

states have passed laws modeled on Texas's SB 8,¹⁹¹ authorizing private citizens to sue anyone who "aids or abets" abortion, regardless of where the conduct occurred.¹⁹² In this legal environment, rights depend not only on where you are, but where you've been, where you're going, and who helped you get there.

There is no clear framework for resolving conflicts over enforcement, travel, or extraterritorial jurisdiction. The result is a governance vacuum—one in which federal silence allows state laws to clash and control with impunity, and where uncertainty itself becomes a tool of deterrence.¹⁹³

4. Consequences: Legal Precarity and Regulatory Asymmetry

While the collapse of federal protection has created a governance vacuum in many states, the federal government's legal presence has not disappeared. Dormant statutes remain potent. Even in protective states, the specter of federal illegality looms. The Comstock Act has reemerged as a potential enforcement tool against abortion access, threatening even FDA-approved medication protocols.¹⁹⁴ Anti-abortion advocates have argued that Comstock prohibits the mailing of mifepristone and misoprostol, despite their federal approval and long-standing clinical use.¹⁹⁵ Although the statute has not been enforced in modern times, its continued presence, and the possibility that courts or future administrations might revive it, creates a persistent legal threat.

Meanwhile, enforcement asymmetry deepens the precarity of care. Providers may face civil, criminal, or professional risks not only from state restrictions, but also from unpredictable shifts in federal interpretation. FDA authority over medication abortion remains legally intact, but its jurisdiction and enforcement power have been

against-doctor-over-abortion-2025-07-14/ (describing Ulster County clerk's refusal to enforce \$100,000 judgment against physician Margaret Carpenter, citing New York's shield law protections).

¹⁹¹ TEX. HEALTH & SAFETY CODE § 171.208 (West 2025) (authorizing private civil actions against anyone who "aids or abets" abortions performed in violation of a Texas ban).

¹⁹² See CAL. HEALTH & SAFETY CODE § 123467.5 (West 2025) (prohibiting enforcement of out-of-state civil judgments related to abortion services lawfully provided in California); UCLA SCH. OF L., CALIFORNIA SHIELD LAW FACT SHEET 1 (2024) (analyzing the scope and implications of California's shield law and outlining its legal protections for both abortion and gender-affirming care); see also N.Y. EXEC. LAW § 837-x (McKinney 2025) (prohibiting cooperation with out-of-state investigations or prosecutions related to reproductive healthcare lawfully provided in New York).

¹⁹³ David S. Cohen, Greer Donley & Rachel Rebouché, *The New Abortion Battleground*, 123 COLUM. L. REV. 1, 1 (2023) (analyzing interjurisdictional conflicts and legal incoherence across states); Greer Donley & Caroline Kelly, *Abortion Disorientation*, 74 DUKE L.J. 1 (2024) (demonstrating divergent state definitions and the destabilizing effects in post-*Dobbs* doctrine).

¹⁹⁴ 18 U.S.C. § 1461 (prohibiting the mailing of "obscene" materials, including abortifacients).

¹⁹⁵ Reva B. Siegel & Mary Ziegler, *Comstockery: How Government Censorship Gave Birth to the Law of Sexual and Reproductive Freedom, and May Again Threaten It*, 134 YALE L.J. 1068, 1159–70 (2025) (analyzing the post-*Dobbs* revival of the Comstock Act and its potential to threaten FDA-approved abortion drugs).

destabilized—subject to political volatility more than legal clarity. In this legal environment, the threat of federal “snapback”—a sudden reactivation of dormant authority—casts a long shadow. Even where states seek to protect access, federal retreat does not equal federal absence. It is a precarious silence, not a stable peace.

5. Why Abortion Exemplifies Post-Supremacy Federalism

Abortion law exemplifies a distinct form of post-supremacy federalism catalyzed by the collapse of coherent federal governance. Supremacy persists on paper, but states govern in practice: constructing legal regimes to restrict, protect, or even shield abortion access across state lines. Unlike drug policy, where federal prohibition remains but enforcement has faded, abortion law reveals what happens when a constitutional right is not merely neglected but dismantled. The result is not balance or devolution, but fragmentation, asymmetry, and urgent state innovation.

This case study underscores a central premise of post-supremacy federalism: When federal power retreats without relinquishing formal control, states are left to govern in its shadow. They do so not as partners, but as improvisers—crafting legal frameworks amid uncertainty, residual constraint, and the looming threat of federal snapback. The lesson is not just about abortion, but about governance in an era when federal supremacy exists in name but not in function. In this post-supremacy reality, access to care, and the legal stability that should guarantee it, depends not on constitutional right, but on geography, politics, and luck.

V. PART V: CONSEQUENCES AND POSSIBILITIES

A. *Consequences: Uncertainty, Inequality, and Federalist Drift*

The architecture of post-supremacy federalism is not just structurally novel—it is also functionally destabilizing. The consequences are far beyond intergovernmental power shifts. When supremacy persists in theory but not in force, the result is not legal pluralism or negotiated compromise. It is legal uncertainty, inequality, and federalist drift.

The first and most immediate consequence is legal uncertainty. Statutory persistence without enforcement generates confusion for both institutional actors and the people governed by them. Agencies, businesses, and state officials operate under rules that may or may not be enforced—depending not on law or principle, but on who holds federal power at a given moment. Individuals seeking care, pursuing education, or navigating regulated industries encounter rights and responsibilities that vary dramatically across jurisdictional lines—with little clarity about what federal protection, if any, remains.¹⁹⁶

Second, post-supremacy federalism deepens geographic and institutional inequality. As the federal floor collapses, rights and access depend increasingly on geography and state political will. In some places, state governments expand

¹⁹⁶ See *supra* Part IV (documenting state-level divergence in abortion access, education civil rights enforcement, marijuana regulation, and environmental standards).

protections and fill the vacuum with robust systems of care or regulation.¹⁹⁷ In others, they exploit the absence of federal enforcement to narrow rights, withhold services, or criminalize conduct once protected.¹⁹⁸ This divergence is not new, but it has accelerated. In areas like marijuana, abortion, education, and environmental protection, the difference between living in Massachusetts and Mississippi, or California and West Virginia, is no longer just cultural or political—it is legal, material, and life-altering.¹⁹⁹

Finally, this condition produces a kind of federalist drift: a slow but profound reconfiguration of governance in which no one formally redraws the map, but the balance of power nonetheless shifts. This is not dual federalism, where states and the federal government occupy separate spheres. Nor is it cooperative or uncooperative federalism, where they share or contest authority. Post-supremacy federalism emerges not from conflict but from collapse—from a vacuum created by retreat, undercapacity, and abandonment. In this new landscape, states govern not as co-equals or rebels, but as reluctant inheritors. They fill the space left behind—but do so under conditions of risk, constraint, and institutional uncertainty.

Post-supremacy federalism is not a theory of everything. It is a map of where we are—and how we got here. This Article has traced the erosion of federal enforcement—federal retreat—across multiple domains, identified the structural conditions that sustain that retreat, and offered a framework for recognizing when state governance arises from abandonment. What remains is to step back and reflect on what this shift means—for law, for governance, and for the uncertain future ahead.

B. Legal Futures in a Post-Supremacy Era

The trajectory of post-supremacy federalism points toward several possible futures—none of them particularly stable, and all shaped by the ongoing erosion of federal enforcement capacity.

One path leads to permanent fragmentation. Federal laws remain nominally supreme, but in practice, they no longer constrain or coordinate state action. The result is a *de facto* confederation, where states operate as semi-sovereign entities and federal authority becomes symbolic. This is not necessarily dystopian—it may even feel familiar to those living under fractured policy regimes—but it would mark the most significant structural shift in American governance since Reconstruction.

Another possibility is violent snapback. The federal government, under the same or different political leadership, could reassert its authority aggressively, reinvigorating dormant statutes, reclaiming and rebuilding agency power, and preempting state systems that have grown entrenched in its absence. This would produce immense legal and economic whiplash. Industries, institutions, and communities that adapted to federal retreat would face sudden invalidation, enforcement, or restructuring.

¹⁹⁷ See CAL. HEALTH & SAFETY CODE § 123467.5 (West 2025) (prohibiting enforcement of out-of-state civil judgments related to abortion services lawfully provided in California).

¹⁹⁸ TEX. HEALTH & SAFETY CODE § 171.208 (West 2025) (authorizing private civil actions against those who “aid or abet” abortions performed in violation of a Texas ban).

¹⁹⁹ See *supra* Part IV (contrasting state-level protections and restrictions in the absence of federal enforcement and highlighting disparate impacts on residents based on geography).

A third scenario involves gradual formalization. Congress could acknowledge the de facto shift in governance and respond with statutory reform: repealing outdated provisions, codifying state-level discretion, or explicitly devolving certain powers. This would be the most democratically legitimate resolution, but the current political polarization makes it the least likely. Still, formalization remains an important benchmark for measuring institutional integrity and legal clarity.

All three futures hinge on a basic threshold insight: We must first recognize what already exists. Post-supremacy federalism is not a theory in waiting—it is the condition we are living through. Federal enforcement capacity has already fractured in key domains. Restoration cannot be assumed. Strategic realism requires working with the system we have, not the one we remember.

This means identifying where authority now resides and where reform is still possible. If federal civil rights enforcement has collapsed, then legal advocacy must shift toward state legislatures and courts. If environmental protections depend on state initiatives rather than EPA enforcement, then those state-level frameworks become the new sites of regulatory possibility. If marijuana regulation remains federally incoherent, then justice-oriented policy must be built through state experimentation, not federal reform. This is not surrender to fragmentation. It is adaptation to the legal reality created by federal retreat.

What seems certain is that the current federalism dynamic—federal laws that exist but don't govern, enforcement that may or may not materialize, and states operating in legal limbo—cannot persist indefinitely. The only real question is whether resolution comes through deliberate choice or chaotic collapse.

C. Prospective Paths: How States Might Govern in the Void

While this Article centers on federal retreat, its long-term consequences will be shaped by how state governments choose to respond. The erosion of federal enforcement leaves a legal and institutional vacuum—but not all states fill that vacuum in the same way, or on the same timeline. Some may lead. Others may lag. Still others may perform the act of governance without meaningfully engaging in it. The variation will not be random. It will be shaped by law, politics, capacity, and institutional trust.

This section offers a typology-in-development: an initial framework for understanding how, when, and why states may act under conditions of post-supremacy federalism. It maps early strategies emerging in response to federal retreat, not to explain what states should do, but to give a conceptual framework for thinking about what is already unfolding—and what may yet come.

1. What States May Do: Functional Roles

States appear to be adopting three broad roles in the wake of federal withdrawal:

- **Substitutes** create full regulatory regimes to replace absent federal structures. These states invest institutional capacity and assume primary responsibility for governance in areas once dominated by federal law.
- **Defenders** aim to preserve federal norms or rights that have lost their federal backing. These states may use legislation, state constitutions, funding, or

agency action to maintain continuity in areas like reproductive rights, civil rights, or environmental standards.²⁰⁰

- **Symbols** perform sovereignty without deep regulatory engagement. They pass declaratory legislation, initiate litigation, or make political statements—without building or maintaining institutional infrastructure. Symbolic governance is expressive, not operational.

These roles are not fixed. States may shift over time or adopt different approaches across domains. But the typology offers a foundation for understanding how power flows when federal enforcement recedes.

2. How States Act: Strategic Modes

In addition to what roles states adopt, it matters how they exercise power. States are beginning to engage in a range of institutional tools to assert authority under conditions of federal absence. Some will use legislation to expand rights, authorize new programs, or preempt conflicting laws.²⁰¹ Others will invest in structural solutions, creating new agencies or commissions to replace federal capacity.²⁰² Many engage the courts—challenging federal inaction, resisting snapback efforts, or attempting to carve out protected space for state autonomy.²⁰³ Performative strategies also appear: symbolic legislation, public declarations, and lawsuits designed to communicate values rather than produce enforceable policy. And increasingly, states are coordinating across borders—forming coalitions to stabilize norms in the face of national fragmentation. These modes often operate in combination, with states layering tools to assert legitimacy, build resilience, or delay collapse.

3. When States Act: Temporal Positioning

States also differ in their timing. Some act as first movers—stepping in early, often before federal enforcement has fully disappeared, and shaping the policy terrain that follows. Others function as stabilizers, intervening after a federal vacuum has emerged to preserve continuity or manage disruption. Still others will be latecomers,

²⁰⁰ See Amy Lerman, *Shielding Reproductive Freedom: Uncovering New York's Law Protecting Providers from Civil and Criminal Liability*, JD SUPRA (July 16, 2025), <https://www.jdsupra.com/legalnews/shielding-reproductive-freedom-4992316/> (summarizing statutory bar on cooperation with out-of-state abortion investigations); see also Wiessner, *supra* note 190 (describing Ulster County clerk's refusal to enforce \$100,000 judgment against physician Margaret Carpenter, citing New York's shield law protections).

²⁰¹ See CAL. HEALTH & SAFETY CODE § 123467.5 (West 2025) (prohibiting enforcement of out-of-state civil judgments related to abortion services lawfully provided in California); see also UCLA SCH. OF L., *supra* note 192 (analyzing the scope and implications of California's shield law and outlining its legal protections for both abortion and gender-affirming care); see also N.Y. EXEC. LAW § 837-x (McKinney 2026) (prohibiting cooperation with out-of-state investigations or prosecutions related to reproductive healthcare lawfully provided in New York).

²⁰² See, e.g., CAL. BUS. & PROF. CODE §§ 26000–26002 (West 2026) (establishing California's Department of Cannabis Control in 2021 to centralize regulatory authority).

²⁰³ *Texas v. Becerra*, 89 F.4th 529, 546 (5th Cir. 2024) (affirming injunction against HHS guidance interpreting EMTALA to require abortion care).

responding only when collapse becomes untenable or public pressure forces a response. These positions matter. First movers shape agenda and structure. Stabilizers manage uncertainty. Latecomers govern under constraint, navigating policy spaces they did not help create. Timing interacts with capacity, political will, and perceived urgency, making it a critical but underexplored variable in post-supremacy governance.

This typology offers a provisional map—not just of what states are doing, but of the choices they may face as federal enforcement continues to erode. It is not yet a theory of what will happen, but a lens for watching what unfolds. Whether these patterns stabilize into a new federal architecture or remain ad hoc responses to collapse remains an open question. But what is clear is that state responses will not be uniform nor random. They will be shaped by legal and financial constraints, political identity, and institutional trust. Mapping those dynamics is the next chapter of this project.

VI. CONCLUSION: NAMING THE MOMENT

This Article offers a new lens for viewing American governance: post-supremacy federalism. It emerges not from formal legal change, but from structural retreat. Federal laws remain, but enforcement fades. Agencies persist, but capacity collapses. States do not seek power; they inherit it—and what they inherit is not clarity or authority, but uncertainty, risk, and responsibility.

The domains explored here—marijuana, education, environmental protection, and abortion—are not aberrations. They are evidence of a broader transformation. The federal government has not relinquished its legal claims, but it has ceased to meaningfully enforce them. In that vacuum, states act. Not as co-sovereigns in a balanced federal scheme, but as the last institutions standing.

Post-supremacy federalism is not a stable design. It is a crisis arrangement: governance persists, but the foundational premises of federal supremacy no longer hold. This Article does not offer a solution. It offers a diagnosis. The first step toward navigating this terrain is to name the condition that shapes it.

Future work will need to explore how states respond—and expand upon the typology introduced here, applying it to emerging domains. Another line of inquiry might ask how post-supremacy federalism reshapes core features of national governance: What happens to the logic of a shared tax system when federal enforcement and investment wither? What are the consequences for redistribution, equity, and public trust when the federal government collects but no longer guarantees?

These are structural questions. But they are not abstract. The transformation traced in this Article carries real costs for real people: a patient turned away from an emergency room; a child denied protection in school; a worker arrested under a law their state chose to ignore.²⁰⁴ Post-supremacy federalism is not only a shift in legal design. It is a rupture in who is protected, where, and by whom. And if you consider the full impact of this shifting dynamic, it is devastating. The belief in the importance of this project was rooted in a conviction that we must not turn away from that devastation—even when examining it closely is deeply uncomfortable.

²⁰⁴ See *supra* Part IV (detailing case studies illustrating the practical and legal consequences of post-supremacy federalism across multiple domains).

This Article leaves the full exploration of those consequences for future work. But that project begins with this one: recognizing that the era of reliable federal supremacy is over, and that the legal order now unfolding is something different entirely. It is a system where states govern by default, under laws they did not choose, without guarantees of stability or support.

Post-supremacy federalism is not legal doctrine. It is a structural condition—defined not by what the Constitution says, but by what the federal government no longer does.

This is not a stable moment. It is a turning one. We do not know what the next five years may bring. But we can name the pattern emerging in the present: federal power persists in law, recedes in practice, and leaves behind a vacuum filled unevenly, often precariously, by state actors.

This piece offers a conceptual map, not a reform agenda. The next step for me is to deepen the analysis of how states govern under these conditions—and what that governance reveals about the evolving structure of American federalism. This work requires more than legal design. It requires reckoning with the role of trust: trust in institutions, in legal protections, in systems meant to govern fairly and functionally. And it requires seeing those institutions clearly—not to abandon them, but to allocate our trust wisely, rebuild what is broken, and imagine what must come next.